

Federal Maritime Commission

Informal Docket No. 1971(F)

Mohawk Global Logistics Corp. DBA Mohawk Global Logistics (Claimant)

vs.

**MSC Mediterranean Shipping Company (USA) INC. as agent for
Mediterranean Shipping Company, S.A., Geneva (Respondent or MSC USA)**

Response of Mohawk Global Logistics to MSC USA Response of September 3, 2021

Claimant Mohawk Global Logistics, representing ourselves, hereby offers our response to Respondent's response dated September 3, 2021.

- I. In their opening remarks, Respondent adds a footnote that identifies MSC as being different from MSC USA. Claimant does not dispute that distinction. For the record, MSC USA is the party who Claimant dealt with to sort out the arrival notice issues; who arranged delivery; who invoiced Claimant for certain charges; and who Claimant paid for certain charges. {See Exhibits 8, 9, 10, 11, 12, 13, 14, & 15}

II. Facts

- a. Claimant agrees with MSC USA that "*Arrival notices for the Containers were sent to Mohawk Logistics at an email address (info@mohawkglobal.com)...*". However, there is no evidence that such email address was "*...provided by Sociedad Exportadora T&A Cordova S.A.C., the shipper named on the bills of lading...*" as specified by MSC USA. Claimant never gave shipper this email address. Shipper also did not provide this, or any email address at all. The bookings were made in Peru using the INTTRA platform, and while Shipper did give correct contact details for Claimant as Notify Party, Shipper did not provide any email address for the INTTRA bookings [See Exhibits 1 & 3, Notify Party],

nor did any email address appear on the draft master bills of lading [See Exhibits 2 & 4, Notify Party}.

- b. Claimant challenged MSC USA regarding the origination of the improper email address. Angelo Latona provided an email response showing a view of MSC USA's own ARRIVAL NOTICE GENERATOR REPORT [See Exhibit 5 February 16, 9:51 AM], which further indicates that it was MSC USA themselves who added the incorrect email address, even though they had the correct email address cdiamond@mohawkglobal.com listed as a 'Previous Address' in that system. Claimant responded on this point the same day {See Exhibit 5, February 16, 2:10 PM] *"...it appears the address you used was added incorrectly by your ARRIVAL NOTICE GENERATOR. Mohawk does not give out that address for anything but sale[s] inquiries. No documentation is transacted on that email address. It appears to me that MSC got that wrong."* No response was received from MSC USA on that point, which remains unrefuted to date. Neither Shipper, nor Claimant provided the erroneous email address, leaving MSC USA's Arrival Notice Generator as the earliest source.
- c. Claimant agrees with MSC USA that *"This email address proved to be an unmonitored general email address."*
- d. When the shipments began to arrive on December 9, 2020, Claimant received an email from Dorota.Mazur@msc.com that collect charges were due. [See Affidavit of Christopher Diamond, attached hereto (hereinafter "Diamond Aff."), ¶ 1. Unaware that MSC USA had sent arrival notices to claimant's unmonitored email address, Claimant proactively began contacting MSC USA on December 9, by email, requesting arrival notices be sent, but did not receive a response from MSC USA. Diamond Aff., ¶ 2.

- e. Claimant sent email requests for five consecutive days to dorota.mazur@msc.com; US038-HelpMelImport@msc.com; & us038-arrival.notices@msc.com with no response. Diamond Aff., ¶ 4, 5, 6, & 7. Then, on December 15 (the last free day), Claimant escalated the email requests to supervisors gaia.sutti@msc.com & lydia.miner@msc.com who identified the erroneous email address the arrival notices had been sent to. Diamond Aff., ¶ 8 & 9.
- f. Additionally, on December 15, Lydia Miner stated that the charges could be found on MYMSC.com. Upon checking that system, Claimant found that none of the four shipments were showing on MYMSC.com. Diamond Aff., ¶ 9 & 10.
- g. Claimant agrees with MSC USA that *“Had the Containers been released during free time, they could have been delivered to the consignee without delay.”* During that period, Claimant proactively tried to retrieve the arrival notices every day, with no response on emails sent to MSC USA. Even if MSC USA did not generate the erroneous email as indicated in Section “b.” above, had MSC USA answered any of Claimant’s emails in a timely basis, the containers could have been delivered to the consignee without delay. This was a costly customer service failure on the part of MSC USA that resulted in delayed delivery and undue penalties for Claimant.
- h. Respondent stated: *“By the time the charges were paid on the Containers, the terminal was closed for almost two full days (December 16 and 17) due to a winter storm.”* This statement is absolutely inaccurate. Claimant escalated the issue and paid total of \$468.00 collect charges due by wire transfer on last free day at 1:41 PM, December 15, 2020. [See Exhibit 11]. Payment was settled within short time of escalating and resolving the arrival notice issue that could have been responded to by MSC USA any of the four preceding days.

- i. On December 16, Laura Cappiello took over the files and advised earliest delivery date was December 23. Claimant requested extended free time, but Cappiello denied the request. Diamond Aff., ¶ 13 & 14.
- j. When it became evident that the delivery delay would be substantial, Claimant escalated request for extended free time on December 17, but the request was again denied. Diamond Aff., ¶16.
- k. On December 18, Cappiello advised that Ice Cube Storage could not accept delivery before December 28. Diamond Aff., ¶ 17. Claimant contacted Ice Cube Storage same day who confirmed they could take cargo as early as December 21 in direct contradiction to Cappiello statement. {See Exhibit No. 6}.
- l. Cappiello initially emailed Diamond *"Customer came back to us and they cannot accept any now o[n] 12.24 all on 12.28"* {See Exhibit 7, Dec 18, 2020, 11:17 AM}. Diamond emailed Cappiello back asking *"Who at the consignee is telling you that? They can take them all as early as 12/21 per below"*. [See Exhibit 7. December 18, 2020, 11:49 AM]. Cappiello changed her story to *"Drivers for those were lost[.] Terminal was closed early on the 16th and the 17th all day. This put a strain to truck power out there and we need enough lead time. Reason Monday appt are not feasible."* [See Exhibit 7, December 18, 2020, 11:59 AM]. At that point Cappiello did arrange prepull of the containers for December 23 and delivery on December 28, and ended the note with *"So just pls take care of the demurrage and msc detention"*

Claimant's position on facts is in line with MSC USA, that the containers could have been delivered on timely basis but for the arrival notice issue that delayed payment until last free day. Had MSC USA used the email address from previous shipments in their Arrival Notice Generator or used the actual contact information that was supplied by shipper and listed on the Master Bill of Lading, they would have

avoided sending the arrival notice to an erroneous address. Furthermore, had MSC USA responded to claimant's emails for five days in a row requesting the arrival notices, the containers could have been delivered timely. The actions of Claimant in proactively seeking a solution to an identified problem for five days in a row far outweighs the inaction of MSC USA who ignored those requests and failed to provide adequate customer service in response to those requests.

This arrival notice issue is the first of several extenuating circumstances. There were other opportunities during those two weeks that MSC USA could have delivered the cargo, where the trucks they lined up fell through. Claimant should not be held responsible for MSC USA's failures there. Lastly, MSC USA attempted to pin the final delivery issue on the receiving warehouse (Ice Cube Storage), but the email exchange between Claimant and the warehouse as demonstrated in Exhibits 6 & 7 prove that excuse to be untrue. MSC USA has attempted to characterize the arrival notice failure and the receiving delay as the Claimant's "fault" however, they need to review the true facts of the case that show these failures were their own. For these reasons, much of Respondent's defense as to root cause of the issues in Section II has been mischaracterized, and as such, should be summarily denied.

III. Failure to State a Claim for Which Relief May be Granted:

- a. Respondent MSC USA is the party that invoiced Claimant for the charges. Claimant concedes that MSC of Geneva, Switzerland is the issuing party of the contract(s) of carriage, however it is MSC USA that invoices additional demurrage charges, and who lists a USA email address and phone number per the link they provide for dispute resolution at www.OCEMA.org. It was MSC USA that failed to respond to Claimant's emails for five days in a row requesting arrival notices. It was also MSC USA that failed

to deliver the containers in a timely manner on behalf of their parent carrier MSC. This argument is perceived by Claimant as nothing more than a bullying tactic that can be easily remedied by filing an amended complaint, which will not change the facts of the case, only the semantics regarding which entity accepts process of service.

- b. Claimant has in fact stated that Respondent violated the Shipping Act by their unreasonable action of charging demurrage under condition of carrier haulage which they applied uniformly to four separate contracts of carriage. That in itself indicates a pattern. Further, the Interpretive Rule issued in May of 2020 adds clarity to the Shipping Act by introducing the concept that *“when incentives such as demurrage and detention no longer function because shippers are prevented from picking up cargo or returning containers within time allotted,” [absent extenuating circumstances], “charges should be suspended.”.*” This concept was obviously written with singular shipments in mind (IE. absent extenuating circumstances), to be applied on case-by-case basis.

Claimant has in fact stated a claim under 46 C.F.R. §545.4(a) for which relief may be granted – against the USA entity representing Vessel Operating Common Carrier MSC, and to whom process of service was instructed to be made by MSC USA’s own employee. {See Exhibit 5, August 4, 12:54 PM}

As for extenuating circumstances, it is MSC themselves who have not followed their own protocols: in arrival notice generation where their system shows they had the proper email address from previous shipments; responding to Claimant’s pleas to send them copies when discovered the arrival notices had not been received by time of vessel arrival; failing to upload the payment details in MYMSC.com; commencing demurrage and detention charges when the terminal was closed for force majeure event

the first two days, and attempting to pin the delays on the receiving warehouse who was able to take delivery of the goods, but for MSC USA's own inability to line up the trucks.

For these reasons Respondent's arguments in Section III are without merit and must be disregarded.

IV. Imposition of Demurrage

- a. MSC USA argues *"It is the prospect of having to pay detention charges for each day after the expiration of free time that serves as the incentive for cargo interests to pick up or arrange for delivery of their cargo. Terminals are routinely closed at night, on weekends, and on holidays. There is nothing unreasonable about charging demurrage at those times."* This statement takes Claimant's argument out of context. Demurrage and detention are charged as daily fees, so application at night when a terminal is closed is understandable.

The context in this case is the last free day was December 15 (same day all collect charges were paid) but was followed by two days that the terminal was closed due force majeure event. No party could be incentivized to deliver the cargo on December 16 or 17 while the terminal was closed. Claimant remains adamant that detention and demurrage should not have started in the first place due to MSC USA failure to send the arrival notices. Claimant further asserts that Detention and Demurrage should not have started the next consecutive 2 days where the terminal was closed due to force majeure event.

Further problems encountered by MSC USA's operation prevented delivery on December 18, December 21, and all remaining days until December 28 including the Christmas holiday. While delivery set-up on December 18 could not be arranged by MSC

USA, Ice Cube Storage was clear in their communication that they were available to accept delivery as early as December 21, but MSC USA could not facilitate any sooner delivery than December 28. In assessing the incentivization concept, MSC USA should not be permitted to delay the cargo while also charging detention and demurrage for delays caused by their own operational issues, all beyond the Claimant's control.

- b. Claimant reasserts neither shipper nor Claimant provided the improper email address to MSC USA. Further, when claimant was made aware cargo was discharging without arrival notices in hand, Claimant proactively sent emails to MSC USA five days in a row requesting copies of the arrival notices. Again, MSC USA correctly argues *"But for the fact that the email address provided by the shipper was incorrect, delivery notices would have been received, charges resolved, and cargo delivered prior to the end of free time."* It is clear by Exhibits 1, 2, 3 & 4 that the Shipper did not provide any email address. Claimant meanwhile requested arrival notices before and during free time, five days in row, without response. If MSC USA had responded in a timely manner the cargo would have been delivered on time.

Demurrage and detention charges were in fact incurred due the omission by MSC USA of responding to Claimant's emails five days in row. The imposition of demurrage and detention charges is therefore an unreasonable practice in consideration of extenuating circumstance of this case.

The notion that *"if Claimant were not to be liable for demurrage under these circumstances, then cargo interests would be free to shirk their responsibilities and use*

marine terminals to store their cargo free of charge by claiming demurrage is “unreasonable.”” is patently absurd. The Consignee did not want their cargo to be delayed, but to the contrary, was quite willing and expected to take delivery during free time and in the two weeks that followed, if only MSC USA could make the deliveries. In fact, earlier delivery dates were requested, appointments made, and then scrapped by MSC USA, because they could not secure the trucks.

C. Claimant reasserts the premise of the Interpretive Rule that the concept of “Once in Demurrage” should be addressed specifically in the case of force majeure where the terminal was closed on December 16 & 17 where no deliveries could be effected. Claimant maintains that there should have been no demurrage assessed in the first place. A simple remedy by MSC USA could have been extending the free time, but Claimant’s requests for such extension were denied, even though such extension are given by terminals and carriers in other cases. Once free time expired on December 15 (MSC USA’s arrival notice issue notwithstanding), Demurrage and Detention should not have commenced on December 16 or 17 with the terminal closed for a force majeure event.

The arguments made by MSC USA under **Section IV** are therefore without merit and should not be considered in this case. The imposition of demurrage and detention in this case is, in fact, unreasonable.

V. Claimant’s Argument with Respect To Shipping Terms

Claimant is a USA Licensed Customs Broker, providing only Customs Clearance related services on behalf of the consignee in this transaction. Claimant had nothing to do with the set-up of transportation

services, or prepaid freight charges which were arranged and paid by Shipper in this DAP transaction. It is in that regard that the relevance of the INCOTERMS comes into play. Shipper arranged prepayment of the four containers to destination warehouse door, and Consignee believes they purchased the goods on a door delivered basis. MSC USA correctly states that *“the seller is responsible for arranging carriage and for delivering the goods, ready for unloading from the arriving means of transport, at the named place”*. This point is not in dispute. MSC USA goes on to point out *“The Commission ruled in favor of the carriers, finding that unless the carrier had entered into an agreement to the contrary with the shipper and the consignee, the carrier may look to either of them for payment of charges.”* In this case however, MSC USA invoiced Claimant (a Customs Broker) for the detention charges, not the Shipper or Consignee. The dispute is therefore between the parties to the contract of carriage which are Shipper, Consignee and Ocean Common Carrier. Claimant, acting as facilitator, should not be held accountable for the detention and demurrage fees, particularly when it has been well demonstrated that charging such fees in this case, under the extenuating circumstances noted, is unreasonable.

Conclusion

Claimant acting solely as a Customs Broker in this transaction and listed as Notify Party on the Master Bills of Lading, had a reasonable expectation they would be notified by MSC USA just as they had been on previous shipments where the arrival notices were sent to email address of Chris Diamond. When that did not happen, Chris Diamond did what any prudent person would do. Realizing he had no arrival notices in hand on the day the vessel arrived, he contacted MSC USA asking for copies so he could pay the freight. When MSC USA did not respond, he emailed them again, and again, for five consecutive days. On the last free day, he escalated his emails to supervisors, who quickly identified the problem, and Chris Diamond arranged payment for all collect charges due same day. That issue could have been avoided, if MSC USA had only responded to Chris Diamond’s emails, or used the contact information, correctly given by the Shipper, to ascertain his email address. That did not happen. Then, with free time

coming to a rapid close due lack of response from MSC USA, Chris Diamond requested extended free time, which was denied citing it was the Shipper's error. It was not. When it became evident this was going to be a long delay by MSC USA, Chris Diamond requested extended free time again, but was again denied. MSC USA had plenty of excuses for charging Detention and Demurrage. First it was the arrival notice issue, then the winter storm, shortage of trucks, Christmas holiday, and finally the story that the warehouse could not take the cargo until December 28, only to be recanted when the facts were presented to them. This was an epic customer service failure that went from bad to worse. MSC USA was the bad actor, not the Claimant. It is for all these reasons we request a ruling in favor of Claimant for reimbursement for all demurrage and detention charges as outlaid and presented in the amount of \$21,468.00.

Respectfully Submitted,

Mohawk Global Logistics



By: Richard J Roche

123 Air Cargo Road

N. Syracuse, NY 13014

(315) 455-3003

rroche@mohawkglobal.com

September 23, 2021

CERTIFICATE OF SERVICE

I, Richard J. Roche, do hereby certify that on September 23, 2021, a copy of the foregoing Response was served via email on the following:

Wayne R. Rohde

Cozen O'Connor

wrohde@cozen.com

By:



Richard J. Roche

AFFIDAVIT OF CHRISTOPHER DIAMOND

My name is Christopher Diamond, and I am employed as the Operations Manager for Mohawk Global Logistics Corp. doing business at 1165 Washington St Hanover MA 02339. I am familiar with the circumstances surrounding the delivery of the four containers by MSC Mediterranean Shipping Company (USA) Inc to Mohawk Global's client, Atlantic Capes Fisheries identified in the four bills of lading in question. I hereby state the timeline of events that I know to be true as follows:

1. 12/9/2020 – Mohawk Global received email from Dorota.Mazur@msc.com that Collect Charges were due on MEDUL2919032
2. 12/9/2020 – I emailed dorota.mazur@msc.com; US038-HelpMeImport@msc.com; us038-arrival.notices@msc.com asking for Arrival Notice for MEDUL2919032. MSC did not respond.
3. 12/10/2020 - Mohawk Global received email from Dorota.Mazur@msc.com that Collect Charges were due on MEDUL2901048, MEDUL2901063 & MEDUL2901121
4. 12/10/2020 - I emailed dorota.mazur@msc.com; US038-HelpMeImport@msc.com; us038-arrival.notices@msc.com asking for Arrival Notice for MEDUL2919032. MSC did not respond.
5. 12/11/2020 – I sent a follow up email asking for Arrival Notice and amount of Collect charges for all 4 BL's sent to dorota.mazur@msc.com; US038-HelpMeImport@msc.com; us038-arrival.notices@msc.com, no response.
6. 12/12/2020 - I sent a follow up email asking for Arrival Notice and amount of Collect charges for all 4 BL's sent to dorota.mazur@msc.com; US038-HelpMeImport@msc.com; us038-arrival.notices@msc.com, no response.
7. 12/15/2020 - I sent a follow up email asking for Arrival Notice and amount of Collect charges for all 4 BL's sent to dorota.mazur@msc.com; US038-HelpMeImport@msc.com; us038-arrival.notices@msc.com, no response.
8. 12/15/2020 – I sent email to MSC Import managers gaia.sutti@msc.com & lydia.miner@msc.com for help
9. 12/15/2020 - Lydia Miner responded that all Arrival Notices were sent to info@mohawkglobal.com and could be retrieved at mymsc.com
10. 12/15/2020 – I checked MYMSC.com and none of the 4 shipments/containers showed in MSC's portal at mymsc.com
11. 12/15/2020 – Don Quinn, General Manager at Mohawk Global, located the arrival notices in the info@mohawkglobal.com inbox.
12. 12/15/2020 – Mohawk Global wired Collect fees to MSC and notified Lydia and Gaia as today (Dec 15th) was the last free day for the containers

13. 12/16/2020 – MSC's Import Manager, Laura Cappiello, took over the communication for MSC and advised that she would let Mohawk Global know how much demurrage to pay on 12/17/2020 to release the containers. Mohawk Global requested extended free time and/or relief from demurrage charges due to the delayed arrival notice
14. 12/16/2020 - Laura Cappiello denied extending free time and denied relief from demurrage and/or detention charges.
15. 12/16/2020 – Laura Cappiello advised Mohawk the earliest date MSC could pick up and deliver the containers would be 12/23/20
16. 12/17/2020 – Mohawk Global escalated the demurrage/detention issue and MSC denied requests for demurrage relief.
17. 12/18/2020 – Laura Cappiello advised Mohawk Global the consignee could not accept the containers until 12/28/2020. I contacted Matt Andrade at ICE CUBE Logistics, who advised they could accept the containers as early as 12/21/2020. I then responded to Laura Cappiello that the containers could be accepted earlier. At that point Laura Cappiello's story changed from Ice Cube Cold Storage couldn't receive the containers until December 28th to a shortage of truck power as the reason MSC could not deliver until December 28th.

I declare under penalty or perjury under the laws of the United States that the forgoing is true and correct

State of Massachusetts

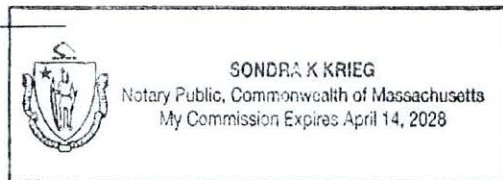
County of Plymouth

On the 21st day of September in the year 2021 before me, the undersigned, personally appeared *[Signature]* personally known to me or proved to me on the basis of satisfactory evidence to be the individual(s) whose name(s) is (are) subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/.her/their capacity(ies) and that by his/her/their signatures(s) on the instrument, the individual(s), or the person upon behalf of which the individual(s) acted, executed the instrument

Signature and office of the individual taking acknowledgement

Notary Public Signature

[Signature]



Roche, Rich

From: si@inttra.com
Sent: Wednesday, August 26, 2020 3:56 PM
To: PE087-inttra@msc.com
Subject: INTTRA SI, SID=338165983, REV=1, BN=087LIM382441, SPC=858843, CARR=MSCU, PLR=, POL=PEPAI, POD=USNYC, PLD=USEWB, PR=SI ACT, PV=3.0, MT=PP, SH=SOCIEDAD EXPORTADORA T & A CORDOVA S.A.C, FW=, CN=Eastern Bank, NP=Mohawk Global
Attachments: si338165983.htm

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Please find attached customer requested Shipping Instruction for

SHIPPING INSTRUCTION NO.: 338165983 - REVISION No.: 1 Provided Via: INTTRA SI ACT, Rev 3.0 Carrier Booking: 087LIM382441 Shippers Ref:

SHIPPING INSTRUCTION CREATOR:

Company: ADM ADUANAS SAC
Co Code: 858843
Name : Manuel Zapata Negrini
Phone : 073-211692
Fax : 073-211692
Email : admpaita@adm.com.pe, despachadorespaita@adm.com.pe, operacionespaita1@adm.com.pe

Text copy follows. Some labels may be blank depending on quality of source data.

INTTRA SHIPPING INSTRUCTION

1. PARTIES:

SHIPPER:
SOCIEDAD EXPORTADORA T & A CORDOVA
S.A.C (858843)
MZA. V LOTE. 1B INT. 4 Z.I. ZONA
INDUSTRIAL II PIURA - PAITA -
PAITA
Not provided

CONSIGNEE:

Eastern Bank
265 Franklin St, Boston, MA 02110,
USA Phone: 1-800-327-8376 Contato:
Louis Kurzrok E-mail
L.Kurzrok@easternbank.
Not provided

FORWARDING AGENT:

Not provided

NOTIFY PARTY:

Mohawk Global
Mr. Chris Diamond Operations
Manager T (508) 257-1052 | M (617)
820-3785 1165 Washington Street |
Hanover, MA | 02339 mohawkglobal.co
Not provided

1st ADDITIONAL NOTIFY PARTY:

Not provided

2nd ADDITIONAL NOTIFY PARTY:

Not provided

CONTRACT PARTY:

Not provided

FREIGHT PAYER:

Not provided

MANUFACTURER/SUPPLIER:

Not provided

SHIP TO:

Not provided

CONSOLIDATOR/STUFFER:

Not provided

IMPORTER:

Not provided

2. REFERENCES:

BOOKING NUMBERS:

087LIM382441

EXPORT REFERENCES:

3. TRANSPORTATION DETAILS:

TYPE OF MOVE: Port,Ramp,CY/CFS to Port,Ramp,CY/CFS
SHIPMENT TYPE: Full loads
VESSEL: MINSTREL
VOYAGE: 035N

4. LOCATIONS:

PLACE OF ORIGIN OF GOODS:

NAME: Not provided
COUNTRY: Not provided
LOCATION ID: Not provided

PLACE OF INITIAL RECEIPT:

NAME: Not provided
COUNTRY: Not provided
LOCATION ID: Not provided

PORT OF LOADING:

NAME: PAITA, PERU
COUNTRY: PERU
LOCATION ID: PEPAI
Not provided

PORT OF DISCHARGE:

NAME: NEW YORK, USA
COUNTRY: UNITED STATES
LOCATION ID: USNYC

PLACE OF DELIVERY:

NAME: FALL RIVER-NEW BEDFORD APT, MA, UNITED STATES
COUNTRY: UNITED STATES
LOCATION ID: USEWB

PLACE OF PAYMENT:

NAME: Not provided
COUNTRY: Not provided
LOCATION ID: Not provided

B/L RELEASE OFFICE:

NAME: PAITA
COUNTRY: PERU
LOCATION ID: PEPAI

B/L RELEASE DATE:

Not provided

5. CHARGE PAYMENT INSTRUCTIONS:

EXB 1

PAGE 4 OF 6

INDIVIDUAL CHARGES:

BASIC FREIGHT:

Freight Term: Prepaid

Payer: Shipper

Payment Location:

6. LETTER OF CREDIT:

Not provided

7. B/L CLAUSES:

Not provided

8. GENERAL INFORMATION:

Not provided

9. SPECIAL INSTRUCTIONS:

Not provided

10. UNIT OF MEASURE FOR B/L PRODUCTION:

Not provided

11. TOTAL SUMMARY AS PROVIDED BY SUBMITTING PARTY:

TOTAL SHIPMENT WEIGHT: 18670.0 Kilograms

TOTAL SHIPMENT VOLUME: 0.0

TOTAL OUTER PACKAGES COUNT: 1200

TOTAL CONTAINERS COUNT: 1

SHIPPER'S DECLARED VALUE: Not provided

12. HOUSE BILL COMPLIANCE INFORMATION:

N/A

13. DOCUMENTS AS REQUESTED BY SUBMITTING PARTY:

B/L ORIGINAL: 3 NOT FREIGHTED3 FREIGHTED

B/L COPIES: 3 FREIGHTED3 NOT FREIGHTED
SEA WAYBILL: 0

EXB 1
PAGE 5 OF 6

DETAIL BY CONTAINER

CONTAINER NUMBER: TEMU9181203
CONTAINER TYPE: 40 Reefer High Cube (45R1)
CONTAINER DESC.: 40x9.5 40 Reefer High Cube
CONTAINER COMMENTS.: Not provided
CONTAINER SUPPLIER: Carrier
CONTAINER NET WEIGHT: Not provided
CONTAINER GROSS VOLUME: Not provided
CONTAINER TARE WEIGHT: Not provided
WOOD DECLARATION: Not provided
CONTAINER REFERENCES:
Not provided
CONTAINER STUFFING LOCATION:
NAME : Not provided
COUNTRY : Not provided
LOCATION ID : Not provided
CONTAINER SEAL: FX13284720 (Carrier)
CONTAINER SEAL: 008AD015559 (Customs)

CONTAINER SPECIAL INFO:

Reefer Info:
Temp: -20.0 Centigrade

COMMODITIES WITHIN CONTAINER

ITEM (1)

REPORTED AT OUTER LEVEL:

GOODS DESCRIPTION:
1200 BOXES
36,000 LBS FROZEN SCALLOPS ROE OFF
(ARGOPECTEN PURPURATUS)

"FREIGHT PREPAID"

ADDITIONAL PRODUCT ID: 03072210
IDENTIFICATION CODE: Harmonised system code

ITEM DANGEROUS GOODS SPECIFICS:
Not provided

PER CONTAINER ITEM WEIGHT: 18670.0 Kilograms
ITEM VOLUME: Not provided
ITEM PACKING INFO: 1200 BOXES

EXB 1

PAGE 6 OF 6

ITEM REFERENCES:

ITEM MARKS AND NUMBERS:

TERMOREGISTRO:

FTC2447 // FTC2241

NO INNER DETAILS REPORTED

ADDITIONAL HEADER TEXT INFORMATION:

BL REMARKS:

TRANSPORT REMARKS:

INTTRA SHIPPING INSTRUCTION

Provided Via INTTRA SI ACT, Rev.: 3.0

EXB 2
PAGE 1 OF 2

SHIPPING INSTRUCTION CREATOR:

ADM ADUANAS SAC

Manuel Zapata Negrini

Phone: 073-211692, Fax: 073-211692, Email: admpaita@adm.com.pe, despachadorespaita@adm.com.pe, operacionespaita1@adm.com.pe

This is a Consolidation Shipment containing both Master and House Bill data

SHIPPER SOCIEDAD EXPORTADORA T & A CORDOVA S.A.C (858843) MZA. V LOTE. 1B INT. 4 Z.I. ZONA INDUSTRIAL II PIURA - PAITA - PAITA No Contact information provided Street : City : State/Province : Postal Code : Country :	FORWARDING AGENT	CARRIER BOOKING NO. 087LIM382441	SHIPPING INSTRUCTION NO. / REVISION NO. 338165983 / 1
		EXPORT REFERENCES	CUSTOMER SUBMISSION DATE 26-Aug-2020 19:45:30 GMT
CONSIGNEE Eastern Bank 265 Franklin St, Boston, MA 02110, USA Phone: 1-800-327-8376 Contato: Louis Kurzrok E-mail L.Kurzrok@easternbank. No Contact information provided Street : City : State/Province : Postal Code : Country :	NOTIFY PARTY Mohawk Global Mr. Chris Diamond Operations Manager T (508) 257-1052 M (617) 820-3785 1165 Washington Street Hanover, MA 02339 mohawkglobal.co No Contact information provided Street : City : State/Province : Postal Code : Country :	1st ADDITIONAL NOTIFY PARTY	2nd ADDITIONAL NOTIFY PARTY
CONTRACT PARTY	FREIGHT PAYER	MANUFACTURER/SUPPLIER	SHIP TO
CONSOLIDATOR/STUFFER	IMPORTER		
POINT AND COUNTRY OF ORIGIN OF GOODS CITY: Not provided COUNTRY: Not provided LOCATION ID: Not provided	TYPE OF MOVE Port,Ramp,CY/CFS to Port,Ramp,CY/CFS	SHIPMENT TYPE Full loads	CARRIER, VESSEL, VOYAGE MSCU, MINSTREL, 035N
PLACE OF INITIAL RECEIPT CITY: Not provided COUNTRY: Not provided LOCATION ID: Not provided	PORT OF LOAD CITY: PAITA, PERU COUNTRY: PERU LOCATION ID: PEPAI	PORT OF DISCHARGE CITY: NEW YORK, USA COUNTRY: UNITED STATES LOCATION ID: USNYC	PLACE OF DELIVERY CITY: FALL RIVER-NEW BEDFORD APT, MA, UNITED STATES COUNTRY: UNITED STATES LOCATION ID: USEWB

PARTICULARS						
CONTAINER	GID Seq. / Packing Level	MARKS & NUMBERS	NO OF PKGS	DESCRIPTION	GROSS WEIGHT	VOLUME
TEMU9181203 40 Reefer High Cube (45R1) 40x9.5 40 Reefer High Cube Container References: Not provided Seal: FX13284720 (Carrier) 008AD015559 (Customs) Temp: -20.0 Centigrade Container Supplier:	(1) OUTER	TERMORE GISTRO: FTC2447 // FTC2241	1200 BOXES	Cargo 1 1200 BOXES 36,000 LBS FROZEN SCALLOPS ROE OFF (AR GOPECTEN PURPURATUS) "FREIGHT PREPAID" HS Code: 03072210	Per Container: 18670.0 Kilograms	

Carrier							
Container Comments:							
Not Provided							
Wood Declaration: Not provided							

SHIPPERS DECLARED VALUE:	B/L RELEASE OFFICE	DATE OF ISSUE	FREIGHT PAYABLE AT
	CITY: PAITA COUNTRY: PERU LOCATION ID: PEPAI		CITY: Not provided COUNTRY: Not provided LOCATION ID: Not provided

CHARGE TYPE	FREIGHT TERM	PAYER	PAYMENT LOCATION
BASIC FREIGHT:	Prepaid	Shipper	

CLAUSES:	Not provided
COMMENT:	
BL REMARKS:	
TRANSPORT REMARKS:	
MEASURE FOR B/L PRODUCTION:	
Documentation parameters as requested by submitting party:	
B/L Originals: 3 FREIGHTED	
B/L Originals: 3 NOT FREIGHTED	
B/L Copies: 3 FREIGHTED	
B/L Copies: 3 NOT FREIGHTED	
LETTER OF CREDIT:	
Not provided	

CONTROL TOTALS	As provided
TOTAL CONTAINER COUNT:	1
TOTAL PACKAGE COUNT:	1200
TOTAL WEIGHT:	18670.0 Kilograms
TOTAL VOLUME:	0.0

Roche, Rich

From: si@inttra.com
Sent: Wednesday, September 30, 2020 1:14 PM
To: PE087-inttra@msc.com
Subject: INTTRA SI, SID=341570819, REV=1, BN=087LIM386538, SPC=858843, CARR=MSCU, PLR=, POL=PEPAI, POD=USNYC, PLD=USCQH, PR=SI ACT, PV=3.0, MT=PP, SH="SOCIEDAD EXPORTADORA T & A CORDOVA S.A.C. ", FW=, CN=Eastern Bank, NP=Mohawk Global
Attachments: si341570819.htm

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Please find attached customer requested Shipping Instruction for

SHIPPING INSTRUCTION NO.: 341570819 - REVISION No.: 1 Provided Via: INTTRA SI ACT, Rev 3.0 Carrier Booking: 087LIM386538 Shippers Ref:

SHIPPING INSTRUCTION CREATOR:

Company: ADM ADUANAS SAC
Co Code: 858843
Name : Manuel Zapata Negrini
Phone : 073-211692
Fax : 073-211692
Email : admppaita@adm.com.pe, despachadorespaita@adm.com.pe, operacionespaita1@adm.com.pe

Text copy follows. Some labels may be blank depending on quality of source data.

INTTRA SHIPPING INSTRUCTION

1. PARTIES:

SHIPPER:
"SOCIEDAD EXPORTADORA T & A CORDOVA
S.A.C. " (858843)
MZA. V LOTE. 1B INT. 4 Z.I. ZONA
INDUSTRIAL II PIURA - PAITA -
PAITA
Not provided

CONSIGNEE:

Eastern Bank
265 Franklin St, Boston, MA 02110,
USA
E-mail L.Kurzrok@easternbank.
Name : Louis Kurzrok
Phone : 1-800-327-8376
Fax :
Email :
Not provided

FORWARDING AGENT:

Not provided

NOTIFY PARTY:

Mohawk Global
Mr. Chris Diamond
Operations Manager
1165 Washington Street | Hanover,
MA | 02339 mohawkglobal.com
Name : .
Phone : T (508) 257-1052 | M (617) 820-3785
Fax :
Email :
Not provided

1st ADDITIONAL NOTIFY PARTY:

Not provided

2nd ADDITIONAL NOTIFY PARTY:

Not provided

CONTRACT PARTY:

Not provided

FREIGHT PAYER:

Not provided

MANUFACTURER/SUPPLIER:

Not provided

SHIP TO:

Not provided

CONSOLIDATOR/STUFFER:

Not provided

IMPORTER:

Not provided

2. REFERENCES:

BOOKING NUMBERS:

087LIM386538

EXPORT REFERENCES:

3. TRANSPORTATION DETAILS:

TYPE OF MOVE: Port,Ramp,CY/CFS to Port,Ramp,CY/CFS
SHIPMENT TYPE: Full loads
VESSEL: MERIDIAN
VOYAGE: 040N

4. LOCATIONS:

PLACE OF ORIGIN OF GOODS:

NAME: Not provided
COUNTRY: Not provided
LOCATION ID: Not provided

PLACE OF INITIAL RECEIPT:

NAME: Not provided
COUNTRY: Not provided
LOCATION ID: Not provided

PORT OF LOADING:

NAME: PAITA, PERU
COUNTRY: PERU
LOCATION ID: PEPAI
Not provided

PORT OF DISCHARGE:

NAME: NEW YORK, UNITED STATES
COUNTRY: UNITED STATES
LOCATION ID: USNYC

PLACE OF DELIVERY:

NAME: CRANSTON
COUNTRY: UNITED STATES
LOCATION ID: USCQH

PLACE OF PAYMENT:

NAME: Not provided
COUNTRY: Not provided
LOCATION ID: Not provided

B/L RELEASE OFFICE:

NAME: PAITA

COUNTRY: PERU
LOCATION ID: PEPAI

B/L RELEASE DATE:
Not provided

5. CHARGE PAYMENT INSTRUCTIONS:

INDIVIDUAL CHARGES:

BASIC FREIGHT:
Freight Term: Prepaid
Payer: Shipper
Payment Location:

6. LETTER OF CREDIT:

Not provided

7. B/L CLAUSES:

Not provided

8. GENERAL INFORMATION:

Not provided

9. SPECIAL INSTRUCTIONS:

Not provided

10. UNIT OF MEASURE FOR B/L PRODUCTION:

Not provided

11. TOTAL SUMMARY AS PROVIDED BY SUBMITTING PARTY:

TOTAL SHIPMENT WEIGHT: 19500.0 Kilograms
TOTAL SHIPMENT VOLUME: 0.0
TOTAL OUTER PACKAGES COUNT: 1200
TOTAL CONTAINERS COUNT: 1
SHIPPER'S DECLARED VALUE: Not provided

12. HOUSE BILL COMPLIANCE INFORMATION:

N/A

13. DOCUMENTS AS REQUESTED BY SUBMITTING PARTY:

B/L ORIGINAL: 3 NOT FREIGHTED3 FREIGHTED
B/L COPIES: 3 FREIGHTED3 NOT FREIGHTED
SEA WAYBILL: 0

DETAIL BY CONTAINER

CONTAINER NUMBER: TEMU9336291
CONTAINER TYPE: 40 Reefer High Cube (45R1)
CONTAINER DESC.: 40x9.5 40 Reefer High Cube
CONTAINER COMMENTS.: Not provided
CONTAINER SUPPLIER: Carrier
CONTAINER NET WEIGHT: Not provided
CONTAINER GROSS VOLUME: Not provided
CONTAINER TARE WEIGHT: Not provided
WOOD DECLARATION: Not provided
CONTAINER REFERENCES:

Not provided

CONTAINER STUFFING LOCATION:

NAME : Not provided

COUNTRY : Not provided

LOCATION ID : Not provided

CONTAINER SEAL: FX13281176 (Carrier)

CONTAINER SEAL: 008AD015663 (Customs)

CONTAINER SPECIAL INFO:

Reefer Info:

Temp: -20.0 Centigrade

COMMODITIES WITHIN CONTAINER

ITEM (1)

REPORTED AT OUTER LEVEL:

GOODS DESCRIPTION:

1200 BOXES

FROZEN SCALLOPS ROE OFF

(ARGOPECTEN PURPURATUS)

NET WEIGHT: 36,000 LBS

FREIGHT PREPAID

ADDITIONAL PRODUCT ID: 030722

IDENTIFICATION CODE: Harmonised system code

ITEM DANGEROUS GOODS SPECIFICS:

Not provided

PER CONTAINER ITEM WEIGHT: 19500.0 Kilograms

ITEM VOLUME: Not provided

ITEM PACKING INFO: 1200 BOXES

ITEM REFERENCES:

ITEM MARKS AND NUMBERS:

Not provided

NO INNER DETAILS REPORTED

ADDITIONAL HEADER TEXT INFORMATION:

BL REMARKS:

TRANSPORT REMARKS:

INTTRA SHIPPING INSTRUCTION

Provided Via INTTRA SI ACT, Rev.: 3.0

SHIPPING INSTRUCTION CREATOR:

ADM ADUANAS SAC

Manuel Zapata Negrini

Phone: 073-211692, Fax: 073-211692, Email: admpaita@adm.com.pe, despachadorespaita@adm.com.pe, operacionespaita1@adm.com.pe

This is a Consolidation Shipment containing both Master and House Bill data

SHIPPER "SOCIEDAD EXPORTADORA T & A CORDOVA S.A.C. " (858843) MZA. V LOTE. 1B INT. 4 Z.I. ZONA INDUSTRIAL II PIURA - PAITA - PAITA No Contact information provided Street : City : State/Province : Postal Code : Country :	FORWARDING AGENT	CARRIER BOOKING NO. 087LIM386538	SHIPPING INSTRUCTION NO. / REVISION NO. 341570819 / 1
		EXPORT REFERENCES	CUSTOMER SUBMISSION DATE 30-Sep-2020 17:13:01 GMT
CONSIGNEE Eastern Bank 265 Franklin St, Boston, MA 02110, USA E-mail L.Kurzrok@easternbank. Contact Louis Kurzrok 1-800-327-8376 (T) Street : City : State/Province : Postal Code : Country :	NOTIFY PARTY Mohawk Global Mr. Chris Diamond Operations Manager 1165 Washington Street Hanover, MA 02339 mohawkglobal.com Contact - T (508) 257-1052 M (617) 820-3785 (T) Street : City : State/Province : Postal Code : Country :	1st ADDITIONAL NOTIFY PARTY	2nd ADDITIONAL NOTIFY PARTY
CONTRACT PARTY	FREIGHT PAYER	MANUFACTURER/SUPPLIER	SHIP TO
CONSOLIDATOR/STUFFER	IMPORTER		
POINT AND COUNTRY OF ORIGIN OF GOODS CITY: Not provided COUNTRY: Not provided LOCATION ID: Not provided	TYPE OF MOVE Port,Ramp,CY/CFS to Port,Ramp,CY/CFS	SHIPMENT TYPE Full loads	CARRIER, VESSEL, VOYAGE MSCU, MERIDIAN, 040N
PLACE OF INITIAL RECEIPT CITY: Not provided COUNTRY: Not provided LOCATION ID: Not provided	PORT OF LOAD CITY: PAITA, PERU COUNTRY: PERU LOCATION ID: PEPAI	PORT OF DISCHARGE CITY: NEW YORK, UNITED STATES COUNTRY: UNITED STATES LOCATION ID: USNYC	PLACE OF DELIVERY CITY: CRANSTON COUNTRY: UNITED STATES LOCATION ID: USCQH

PARTICULARS						
CONTAINER	GID Seq. / Packing Level	MARKS & NUMBERS	NO OF PKGS	DESCRIPTION	GROSS WEIGHT	VOLUME
TEMU9336291 40 Reefer High Cube (45R1) 40x9.5 40 Reefer High Cube Container References: Not provided Seal: FX13281176 (Carrier) 008AD015663 (Customs) Temp: -20.0 Centigrade Container Supplier: Carrier Container Comments:	(1) OUTER		1200 BOXES	Cargo 1 1200 BOXES FROZEN SCALLOPS ROE OFF (ARGOPECTEN PURPURATUS) NET WEIGHT: 36,000 LBS FREIGHT PREPAID HS Code: 030722	Per Container: 19500.0 Kilograms	

Not Provided Wood Declaration: Not provided						
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SHIPPERS DECLARED VALUE:	B/L RELEASE OFFICE CITY: PAITA COUNTRY: PERU LOCATION ID: PEPAI	DATE OF ISSUE	FREIGHT PAYABLE AT CITY: Not provided COUNTRY: Not provided LOCATION ID: Not provided
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CHARGE TYPE	FREIGHT TERM	PAYER	PAYMENT LOCATION
BASIC FREIGHT:	Prepaid	Shipper	

CLAUSES:	Not provided
COMMENT:	
BL REMARKS:	
TRANSPORT REMARKS:	
MEASURE FOR B/L PRODUCTION:	
Documentation parameters as requested by submitting party: B/L Originals: 3 FREIGHTED B/L Originals: 3 NOT FREIGHTED B/L Copies: 3 FREIGHTED B/L Copies: 3 NOT FREIGHTED	
LETTER OF CREDIT: Not provided	

CONTROL TOTALS	As provided
TOTAL CONTAINER COUNT:	1
TOTAL PACKAGE COUNT:	1200
TOTAL WEIGHT:	19500.0 Kilograms
TOTAL VOLUME:	0.0

Roche, Rich

From: angelo.latona@msc.com
Sent: Wednesday, August 4, 2021 12:54 PM
To: Roche, Rich
Cc: jeff.buirge@msc.com
Subject: FW: NEED DET/DEM 3x 40HR Fall River, MA 02720
Attachments: INTTRA SI, SID=338165983, REV=1, BN=087LIM382441, SPC=858843, CARR=MSCU, PLR=, POL=PEPAI, POD=USNYC, PLD=USEWB, PR=SI ACT, PV=3.0, MT=PP, SH=SOCIEDAD EXPORTADORA T & A CORDOVA S.A.C, FW=, CN=Eastern Bank, NP=Mohawk Global; INTTRA SI, SID=341570819, REV=1, BN=087LIM386538, SPC=858843, CARR=MSCU, PLR=, POL=PEPAI, POD=USNYC, PLD=USCQH, PR=SI ACT, PV=3.0, MT=PP, SH="SOCIEDAD EXPORTADORA T & A CORDOVA S.A.C. ", FW=, CN=Eastern Bank, NP=Mohawk Global; MSC D&D under Carrier Haulage.xlsx; RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

Dear Richard, further to our conversation this morning. If you intend to pursue your claim with FMC that is decision to do so. I suggest the named person involved in this case, and dispute is Laura Cappiello, and her email is in these exchanges. Her direct manager is Marco Sidoti. They have the full visibility of the events of your shipments. What I did is collect the data internally from MSC, and your data to help you. MSC is firm on their decision. Laura's department was directly involved in your case, and there is no discount due to these events. Jeff, and I have no visibility or the power to make any decision here. We are sales, and the only involvement we had was to escalate your case. Please send your correspondence to the respective people. Best Regards

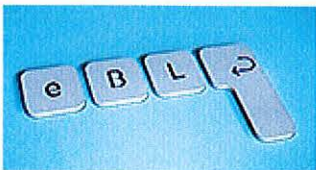
Angelo LaTona
Vice-President

MEDITERRANEAN SHIPPING COMPANY (USA) INC.

Governors Ridge Office Park
1640 Powers Ferry Rd Bldg 29 Suite 200
Marietta, GA 30067
T: +1 770 953 0037 D: +1 770 953 9492 M: +1 954 258 1729 F: +1 770 953 0381; WWW. **MSC.COM**
As Agent For MSC Mediterranean Shipping Company S.A., Geneva



www.msc.com/sot



MSC eBL: WE MAKE IT SIMPLE

[MORE INFO](#)



Sensitivity: Internal

From: Roche, Rich <RRoche@mohawkglobal.com>
Sent: Tuesday, February 16, 2021 2:10 PM
To: Angelo Latona (MSC USA) <angelo.latona@msc.com>
Cc: Jeff Buirge (MSC USA) <jeff.buirge@msc.com>
Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Hi Angelo,

Where do we stand with our refund request for demurrage and detention on all containers I sent you per the excel sheet? You have sent details the attached for only 2 of 5 containers impacted.

Mohawk's role in this was only as Customs Broker for the importer. Here's how we see this...

The INTTRA shipping instructions you sent do not show any email address for Notify party, therefore it appears the address you used was added incorrectly by your ARRIVAL NOTICE GENERATOR. Mohawk does not give out that address for anything but sale inquiries. No documentation is transacted on that email address. It appears to me that MSC got that wrong. I call this Strike One.

Additionally, Mohawk contacted MSC customer service 5 days in a row requesting arrival notice because we had not received it. Our emails went unresponded to by your customer service team until we escalated to management on last free day on 12/15. This set MSC way behind in arranging trucking through the upcoming holiday season. This is strike 2 – 5, but will simply call it Strike Two.

We were then told by Laura Cappiello that the client could not accept deliveries until 12/28. This was completely false. Client was in a hurry to receive the cargo from December 21 onward. That was a blatant Strike Three.

Our position therefore is to request full reimbursement for both demurrage and detention charges paid.

Please advise MSC's position.

Regards,
Rich

From: angelo.latona@msc.com <angelo.latona@msc.com>
Sent: Tuesday, February 16, 2021 9:51 AM
To: Roche, Rich <R.Roche@mohawkglobal.com>
Cc: jeff.buirge@msc.com
Subject: FW: NEED DET/DEM 3x 40HR Fall River, MA 02720

Dear Rich , good morning. I wanted to circle back to this case. Please see all the events . Best Regards

Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

for the following BOLs MEDUL2805017 / MEDUL284757 the SI show that the FFW listed as NTFY MOHAWK and we sent the AN to Mohawk.

Arrival Notice Generator Report

B/L Number	Final Destination	A/N Sent	Revised A/N Sent	ETA POD	Customer Email
MEDUL2805017	Fall River, MA	9/15/2020 5:00 PM		9/17/2020	
MEDUL2847571	Cranston, RI	10/28/2020 2:06 PM	10/29/2020 10:44 AM	10/30/2020	

Angelo LaTona
Vice-President

MEDITERRANEAN SHIPPING COMPANY (USA) INC.

Governors Ridge Office Park
1640 Powers Ferry Rd Bldg 29 Suite 200
Marietta, GA 30067

T: +1 770 953 0037 D: +1 770 953 9492 M: +1 954 258 1729 F: +1 770 953 0381; WWW. **MSC.COM**

As Agent For MSC Mediterranean Shipping Company S.A., Geneva



www.msc.com/sot



mscfoundation.org/donate-now

:

This message and any associated files (together the "Contents") are intended solely for the addressee(s). The Contents are confidential and may contain private information or information that is subject to copyright or is a trade secret or which is privileged. Views or opinions expressed herein do not necessarily represent views or opinions of MSC Mediterranean Shipping Company, its agents or their affiliated companies and may only be the view or opinion of the author. If you are not the intended recipient of this email, you must not use, print, copy, store, forward, or disclose it or act in reliance of the Contents. Please destroy all copies of the message and any associated files and notify the sender immediately that you have received it in error. Thank you for your cooperation.

Sensitivity: Internal

Sensitivity: Internal

Sensitivity: Internal

Roche, Rich

From: Diamond, Chris
Sent: Thursday, December 17, 2020 5:32 PM
To: Mullin, Laura
Cc: Quinn, Don
Subject: FW: Inbound containers to Ice Cube

FYI....Ice Cube could take the containers earlier but MSC can't get any trucks until next week.

From: Matt Andrade <mandrade@icecubecoldstorage.com>
Sent: Thursday, December 17, 2020 8:32 AM
To: Diamond, Chris <cdiamond@mohawkglobal.com>
Cc: Bob O'Connor <boconnor@icecubecoldstorage.com>; Andrea Neal <aneal@icecubecoldstorage.com>
Subject: RE: Inbound containers to Ice Cube

Chris,
We can also take the last container at 10:am on the 21st.

Best Regards,



Matt Andrade
Vice President of Sales
Ice Cube Cold Storage
📞 Direct 774-357-5410 ext. 355 | Cell 508-498-1797
🌐 www.IceCubeColdStorage.com
@ mandrade@icecubecoldstorage.com
📍 451 Currant Road, Fall River, MA 02720



From: Matt Andrade
Sent: Thursday, December 17, 2020 8:27 AM
To: 'Diamond, Chris' <cdiamond@mohawkglobal.com>
Cc: Bob O'Connor <boconnor@icecubecoldstorage.com>; Andrea Neal <aneal@icecubecoldstorage.com>
Subject: RE: Inbound containers to Ice Cube

Chris,
The best we can do is take 3 of them on the 21st at 6:00am, 8:00am, and 10:00am. We will get back to you today or tomorrow on the last container.

Best Regards,



Matt Andrade

Vice President of Sales
Ice Cube Cold Storage

Direct 774-357-5410 ext. 355 | Cell 508-498-1797

www.IceCubeColdStorage.com

@ mandrade@icecubecoldstorage.com

451 Currant Road, Fall River, MA 02720



From: Diamond, Chris <cdiamond@mohawkglobal.com>
Sent: Wednesday, December 16, 2020 3:49 PM
To: Matt Andrade <mandrade@icecubecoldstorage.com>
Subject: RE: Inbound containers to Ice Cube

Hi Matt,

I'm having an awful time with Med Shipping on 4 containers coming up your way for Atlantic Capes.

Med Shipping is telling me that they cannot deliver these containers until 12/23 and 12/28 while racking up \$10,000 to \$20,000 in storage/demurrage charges.

PO# 49834	CRLU1354247
PO# 50334	TTNU8065074
PO# 49835	GESU9376550
PO# 52357	MEDU9127703

Can you let me know if 12/23 and 12/28 are the earliest you can receive these or was this the request of their trucker?

Thanks,

Chris Diamond

Operations Manager

T (508) 257-1052 | M (617) 820-3785

1165 Washington Street | Hanover, MA | 02339

mohawkglobal.com | OTI No.003952NF

From: Matt Andrade <mandrade@icecubecoldstorage.com>
Sent: Thursday, November 12, 2020 11:13 AM
To: Diamond, Chris <cdiamond@mohawkglobal.com>
Subject: RE: Inbound containers to Ice Cube



Chris,
Thanks for the update.

They can either call us directly at 774-357-5410 or email the appointment details to customerservice@icecubecoldstorage.com.

Best Regards,

**Matt Andrade**

Vice President of Sales
Ice Cube Cold Storage

Direct 774-357-5410 ext. 355 | Cell 508-498-1797

www.IceCubeColdStorage.com

@ mandrade@icecubecoldstorage.com

451 Currant Road, Fall River, MA 02720



From: Diamond, Chris <cdiamond@mohawkglobal.com>
Sent: Thursday, November 12, 2020 11:02 AM
To: Matt Andrade <mandrade@icecubecoldstorage.com>
Subject: RE: Inbound containers to Ice Cube

Hi Matt,

2 containers are arriving into NY today.

Hamburg Sud is arranging the deliveries. They or their trucker will be contacting your staff to make appointments.

Thanks,

Chris Diamond

Operations Manager

T (508) 257-1052 | M (617) 820-3785

1165 Washington Street | Hanover, MA | 02339

mohawkglobal.com | OTI No.003952NF

From: Matt Andrade <mandrade@icecubecoldstorage.com>
Sent: Thursday, November 12, 2020 10:51 AM
To: Diamond, Chris <cdiamond@mohawkglobal.com>
Subject: FW: Inbound containers to Ice Cube

Chris,
Any update on these inbounds?

Best Regards,

**Matt Andrade**

Vice President of Sales
Ice Cube Cold Storage

Direct 774-357-5410 ext. 355 | Cell 508-498-1797

www.IceCubeColdStorage.com

@ mandrade@icecubecoldstorage.com

451 Currant Road, Fall River, MA 02720



EXP 6
PAGE 4 OF 4

From: David Shaw <DSHaw@atlanticcap.es.com>

Sent: Thursday, October 22, 2020 10:56 AM

To: Sandy Santos <SBergeron@atlanticcap.es.com>; Chris Diamond (cdiamond@mohawkglobal.com)
<cdiamond@mohawkglobal.com>; CustomerService <customerservice@icecubecoldstorage.com>

Cc: Bob O'Connor <boconnor@icecubecoldstorage.com>; Matt Andrade <mandrade@icecubecoldstorage.com>; Matt Grolnic <MGrolnic@atlanticcap.es.com>; Quality Assurance <QA@atlanticcap.es.com>; Jeff Bolton <JBolton@atlanticcap.es.com>; Chris Brown <CBrown@atlanticcap.es.com>; Tim Arruda <TArruda@atlanticcap.es.com>; Flavio Biscaia <FBiscaia@atlanticcap.es.com>

Subject: Inbound containers to Ice Cube

Good morning

Matt and I met with Bob O'Conner and Matt Andrade at Ice Cube and we went over the attached QC form. They will begin implementing inbound container and truckload QC's with complete details and pictures. I have also asked them to advise me of any inbound purchases that may need QC services.

Sandy

Please forward inbound breakdowns to customerservice@icecubecoldstorage.com.

Chris

Please forward (to the same address) inbound notification when you make the appt. for delivery so they can match up to the container item breakdown.

Please call me with any questions.

Thank you

David Shaw

VP Operations

dshaw@atlanticcap.es.com

Atlantic Capes Fisheries, Inc.

140 Waldron Road

Fall River, MA 02720

508-990-9040 X102 Office

508-951-6964 Cell

Roche, Rich

From: laura.cappiello@msc.com
Sent: Friday, December 18, 2020 11:59 AM
To: Diamond, Chris; US038-nydetention@msc.com; sandra.yepes@msc.com; ina.yoon@msc.com
Cc: dorota.mazur@msc.com; jeff.buirge@msc.com
Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

Chris

I have already explained the issue. Drivers for these were lost
Terminal was closed early on the 16th and closed on the 17th all day.

This put a strain to truck power out there and we need enough lead time. reason Monday appt are not feasible
Im pulling these on 23rd for 28th appt at no extra costs of prepull or storage.

So just pls take care of the demurrage and msc detention

Please follow this link for a [full list of contacts at our offices in the United States](#)

Laura Cappiello

Import & Export Intermodal Manager New York

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

420 Fifth Avenue, 10018, New York, NY, USA

T: +1 212-764-4800 Ext. 33393 F: +1 212-827-1636 W : www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva

****** PLEASE READ BELOW ******

- For **Import Rail New York inquiries**, please send email to US038-IntermodalImportRailNY@msc.com
- For **Import Truck New York inquiries**, please send email to US038-IntermodalImportTruckNY@msc.com
- For **Export Rail New York inquiries**, please send email to US038-IntermodalExportRailNY@msc.com
- For **Export Truck New York inquiries**, please send email to US038-IntermodalExportTruckNY@msc.com
- For **Delivery Orders**, please send them only to US038-nydo@msc.com
- For **IT request/cancellation**, please send your request to US038-NYITamend@msc.com

* Please note that all MSC door moves are live unload unless otherwise pre-arranged with us**

** We require 48 business hrs lead time with a clean shipment (Freight charges, OBL, Customs clearance, Delivery Instructions in place), in order to engage a trucker. If the shipment cannot be dispatched or picked up due to missing any of the above items, upon expiration of the free time the container(s) will incur terminal DEMURRAGE and MSC equipment DETENTION***



**HAPPY HOLIDAY SEASON &
A PROSPEROUS NEW YEAR**

msc.com



From: Diamond, Chris <cdiamond@mohawkglobal.com>

Sent: Friday, December 18, 2020 11:49 AM

To: Laura Cappiello (MSC USA) <laura.cappiello@msc.com>; Marco Sidoti (MSC USA) <marco.sidoti@msc.com>; US038-New York Detention DL <US038-nydetention@msc.com>; Sandra Yepes (MSC USA) <sandra.yepes@msc.com>; Ina Yoon (MSC USA) <ina.yoon@msc.com>

Cc: Dorota Mazur (MSC USA) <dorota.mazur@msc.com>; Jeff Buirge (MSC USA) <jeff.buirge@msc.com>

Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Who at the consignee is telling you that? They can take them all as early as 12/21 per below.

RE: Inbound containers to Ice Cube



Matt Andrade <mandrade@icecubecoldstorage.com>

To: Diamond, Chris

Cc: Bob O'Connor; Andrea Neal

You forwarded this message on 12/17/2020 5:31 PM.

Reply

Reply All

Forward

Thu 12/17/2020 8

Chris,

We can also take the last container at 10:am on the 21st.

Best Regards,



Matt Andrade

Vice President of Sales

Ice Cube Cold Storage

Direct 774-357-5410 ext. 355 | Cell 508-498-1797

www.IceCubeColdStorage.com

@ mandrade@icecubecoldstorage.com

451 Currant Road, Fall River, MA 02720



From: Matt Andrade

Sent: Thursday, December 17, 2020 8:27 AM

To: 'Diamond, Chris' <cdiamond@mohawkglobal.com>

Cc: Bob O'Connor <boconnor@icecubecoldstorage.com>; Andrea Neal <aneal@icecubecoldstorage.com>

Subject: RE: Inbound containers to Ice Cube

Chris,

The best we can do is take 3 of them on the 21st at 6:00am, 8:00am, and 10:00am. We will get back to you today or tomorrow on the last container.

Best Regards,



Matt Andrade

Vice President of Sales

Ice Cube Cold Storage

Direct 774-357-5410 ext. 355 | Cell 508-498-1797

www.IceCubeColdStorage.com

@ mandrade@icecubecoldstorage.com

451 Currant Road, Fall River, MA 02720

From: laura.cappiello@msc.com <laura.cappiello@msc.com>

Sent: Friday, December 18, 2020 11:17 AM

To: marco.sidoti@msc.com; Diamond, Chris <cdiamond@mohawkglobal.com>; US038-nydetention@msc.com; sandra.yepes@msc.com; ina.yoon@msc.com

Cc: dorota.mazur@msc.com; jeff.buirge@msc.com

Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

Hello Marco

Still pending DETENTION invoices thru 12.23

MEDUL2901048 TTNU8065074

MEDUL2901063 GESU9376550

MEDUL2901121 CRLU1354247

Chris

Customer came back to us and they cannot accept any now o 12.24. all on 12.28

Please follow this link for a [full list of contacts at our offices in the United States](#)

Laura Cappiello

Import & Export Intermodal Manager New York

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

420 Fifth Avenue, 10018, New York, NY, USA

T: +1 212-764-4800 Ext. 33393 F: +1 212-827-1636 W : www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva

****** PLEASE READ BELOW ******

- For **Import Rail New York inquiries**, please send email to US038-IntermodalImportRailNY@msc.com
- For **Import Truck New York inquiries**, please send email to US038-IntermodalImportTruckNY@msc.com
- For **Export Rail New York inquiries**, please send email to US038-IntermodalExportRailNY@msc.com
- For **Export Truck New York inquiries**, please send email to US038-IntermodalExportTruckNY@msc.com
- For **Delivery Orders**, please send them only to US038-nydo@msc.com
- For **IT request/cancellation**, please send your request to US038-NYITamend@msc.com

* Please note that all MSC door moves are live unload unless otherwise pre-arranged with us**

** We require 48 business hrs lead time with a clean shipment (Freight charges, OBL, Customs clearance, Delivery Instructions in place), in order to engage a trucker. If the shipment cannot be dispatched or picked up due to missing any of the above items, upon expiration of the free time the container(s) will incur terminal DEMURRAGE and MSC equipment DETENTION***



**HAPPY HOLIDAY SEASON &
A PROSPEROUS NEW YEAR**

msc.com



From: Marco Sidoti (MSC USA) <marco.sidoti@msc.com>

Sent: Wednesday, December 16, 2020 3:24 PM

To: Laura Cappiello (MSC USA) <laura.cappiello@msc.com>; Diamond, Chris <cdiamond@mohawkglobal.com>; US038-New York Detention DL <US038-nydetention@msc.com>; Sandra Yepes (MSC USA) <sandra.yepes@msc.com>

Cc: Dorota Mazur (MSC USA) <dorota.mazur@msc.com>

Subject: RE: NEED DET/DEM 3x 40HR Fall River, MA 02720

Good day

Adding Sandra for assistance

Marco Sidoti
Nationwide Demurrage/Detention/Perdiem Director

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
420 Fifth Avenue, New York, NY, 10018 USA
T: +1 212 764 4800 x 42645 M: +1 917 543 8756 F: +1 908 605 2550 W: www.msc.com
As agent for MSC Mediterranean Shipping Company S.A., Geneva



mscfoundation.org/donate-now



From: Laura Cappiello (MSC USA) <laura.cappiello@msc.com>
Sent: Wednesday, December 16, 2020 3:21 PM
To: Diamond, Chris <cdiamond@mohawkglobal.com>; US038-New York Detention DL <US038-nydetention@msc.com>;
Marco Sidoti (MSC USA) <marco.sidoti@msc.com>
Cc: Dorota Mazur (MSC USA) <dorota.mazur@msc.com>
Subject: NEED DET/DEM 3x 40HR Fall River, MA 02720

Hello **Chris**

Appt are per below. will additional Detention and demurrage paid till day prior pick up
Therefore these will be all picked up 12.23

MEDUL2901048 TTNU8065074 On 12/28
MEDUL2901063 GESU9376550 On 12/24
MEDUL2901121 CRLU1354247 On 12/24

NYDETENTION/Marco

Pls help to issue invoice thru 12.23 for a/m

Please follow this link for a [full list of contacts at our offices in the United States](#)

Laura Cappiello

Import & Export Intermodal Manager New York

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

420 Fifth Avenue, 10018, New York, NY, USA

T: +1 212-764-4800 Ext. 33393 F: +1 212-827-1636 W : www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva

***** PLEASE READ BELOW *****

- For **Import Rail New York inquiries**, please send email to US038-IntermodalImportRailNY@msc.com
- For **Import Truck New York inquiries**, please send email to US038-IntermodalImportTruckNY@msc.com
- For **Export Rail New York inquiries**, please send email to US038-IntermodalExportRailNY@msc.com
- For **Export Truck New York inquiries**, please send email to US038-IntermodalExportTruckNY@msc.com
- For **Delivery Orders**, please send them only to US038-nydo@msc.com
- For **IT request/cancellation**, please send your request to US038-NYITamend@msc.com

* Please note that all MSC door moves are live unload unless otherwise pre-arranged with us**

** We require 48 business hrs lead time with a clean shipment (Freight charges, OBL, Customs clearance, Delivery Instructions in place), in order to engage a trucker. If the shipment cannot be dispatched or picked up due to missing any of the above items, upon expiration of the free time the container(s) will incur terminal DEMURRAGE and MSC equipment DETENTION***



**HAPPY HOLIDAY SEASON &
A PROSPEROUS NEW YEAR**

msc.com



From: Laura Cappiello (MSC USA)

Sent: Wednesday, December 16, 2020 10:31 AM

To: Diamond, Chris <cdiamond@mohawkglobal.com>; Victoria Jackson (MSC USA) <victoria.jackson@msc.com>

Cc: Dorota Mazur (MSC USA) <dorota.mazur@msc.com>; Gaia Sutti (MSC USA) <gaia.sutti@msc.com>; Lydia Miner (MSC USA) <lydia.miner@msc.com>

Subject: RE: NEED 4 ARRIVAL NOTICES!!!

Chris

NYDETENTION will release invoice based on my okay

We wont be able to pick up today

Im waiting on truck

Please follow this link for a [full list of contacts at our offices in the United States](#)

Laura Cappiello

Import & Export Intermodal Manager New York

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

420 Fifth Avenue, 10018, New York, NY, USA

T: +1 212-764-4800 Ext. 33393 F: +1 212-827-1636 W : www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva

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- For **Import Rail New York inquiries**, please send email to US038-IntermodalImportRailNY@msc.com
- For **Import Truck New York inquiries**, please send email to US038-IntermodalImportTruckNY@msc.com
- For **Export Rail New York inquiries**, please send email to US038-IntermodalExportRailNY@msc.com
- For **Export Truck New York inquiries**, please send email to US038-IntermodalExportTruckNY@msc.com
- For **Delivery Orders**, please send them only to US038-nydo@msc.com
- For **IT request/cancellation**, please send your request to US038-NYITamend@msc.com

* Please note that all MSC door moves are live unload unless otherwise pre-arranged with us**

** We require 48 business hrs lead time with a clean shipment (Freight charges, OBL, Customs clearance, Delivery Instructions in place), in order to engage a trucker. If the shipment cannot be dispatched or picked up due to missing any of the above items, upon expiration of the free time the container(s) will incur terminal DEMURRAGE and MSC equipment DETENTION**



**HAPPY HOLIDAY SEASON &
A PROSPEROUS NEW YEAR**

msc.com



From: Diamond, Chris <cdiamond@mohawkglobal.com>

Sent: Wednesday, December 16, 2020 10:21 AM

To: Victoria Jackson (MSC USA) <victoria.jackson@msc.com>

Cc: Dorota Mazur (MSC USA) <dorota.mazur@msc.com>; Laura Cappiello (MSC USA) <laura.cappiello@msc.com>; Gaia Sutti (MSC USA) <gaia.sutti@msc.com>; Lydia Miner (MSC USA) <lydia.miner@msc.com>

Subject: RE: NEED 4 ARRIVAL NOTICES!!!

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

I'm curious why you're responding to these emails now yet each and every one of my email requests starting on 12/9 was ignored.

NY Detention was contacted this morning. Still no response.

From: victoria.jackson@msc.com <victoria.jackson@msc.com>

Sent: Wednesday, December 16, 2020 10:09 AM

To: Diamond, Chris <cdiamond@mohawkglobal.com>

Cc: dorota.mazur@msc.com; laura.cappiello@msc.com; gaia.sutti@msc.com

Subject: RE: NEED 4 ARRIVAL NOTICES!!!

Chris,

AN was sent to the contact POL manifested, we will not be extending free time. In order to receive an invoice please contact us038-nydetention@msc.com

Thanks,

Please follow this link for a [full list of contacts at our offices in the United States](#)

Victoria Jackson

Import Customer Service Assistant Manager

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

The World Trade Center – Suite 1820

401 E.Pratt Street Center Baltimore, MD 21202

T: +1 410 631 7567 W: www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva



**MSC BALTIMORE OFFICE
IS MOVING
January 1st, 2021**

[MORE INFO](#)



**WE GOT YOU COVERED,
WITH ONE NUMBER & A NEW "HELP ME IMPORT" EMAIL ADDRESS!**
Dial 888-262-2520 or email: US038-helpmeimport@msc.com
For Import Inquiries Only



From: Diamond, Chris <cdiamond@mohawkglobal.com>

Sent: Wednesday, December 16, 2020 9:42 AM

To: Gaia Sutti (MSC USA) <gaia.sutti@msc.com>

Cc: Victoria Jackson (MSC USA) <victoria.jackson@msc.com>; Lydia Miner (MSC USA) <lydia.miner@msc.com>; Dorota Mazur (MSC USA) <dorota.mazur@msc.com>; Laura Cappiello (MSC USA) <laura.cappiello@msc.com>

Subject: RE: NEED 4 ARRIVAL NOTICES!!!

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

MEDUL2901121

MEDUL2901048

MEDUL2901063

MEDUL2919032

Lydia and Gaia, Thank you for your help getting me the Arrival Notices.

Now we're on to the next item of storage, demurrage, and detention. I have paid Port Demurrage for today to PNCT and await MSC's Detention charges from the NY Detention team.

Can someone ensure these either get picked up today or extend the free time on these 4 containers? If you are not able to, please put me inContact with someone that can help me.

I've attached 2 email strings here. 1st one is me receiving the Arrival Notices this morning. The day after free time expired. The second is me asking for Arrival Notices since December 9th and getting Zero responses until Lydia got involved.

Thanks,

Chris Diamond

Operations Manager

T (508) 257-1052 | M (617) 820-3785

1165 Washington Street | Hanover, MA | 02339

mohawkglobal.com | OTI No.003952NF

From: gaia.sutti@msc.com <gaia.sutti@msc.com>

Sent: Tuesday, December 15, 2020 11:38 AM

To: Diamond, Chris <cdiamond@mohawkglobal.com>

Cc: victoria.jackson@msc.com; lydia.miner@msc.com

Subject: RE: NEED 4 ARRIVAL NOTICES!!!

Hello,

Fastest way would be Paycargo.



*"For your own convenience, we kindly suggest you check on www.mymsc.com. for information regarding **release status**, **vessel ETA** and **LFD***

*If you still need assistance for above inquiries, please feel free to contact us at **888-262 2520** and take advantage of our newly improved digital phone system!"*

Please follow this link for a [full list of contacts at our offices in the United States](#)

Thank you and best regards,

Gaia Sutti

Import Manager

Import Client Support Center

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

700 Watermark Blvd., Mt. Pleasant, SC 29464 USA
T: 843 971 4100 D: 843 212 1519 C: 843 609 2995 W: www.msc.com
As agent for MSC Mediterranean Shipping Company S.A., Geneva

EXB 7
PAGE 10 OF 14

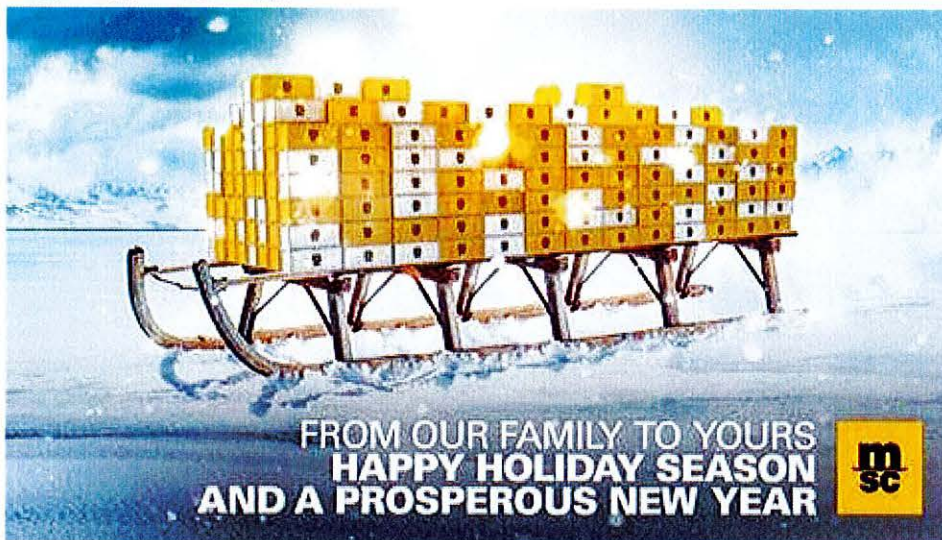
MYMSC.COM

[DETENTION
DEMURRAGE](#)

[TRACK A
SHIPMENT](#)

[LAST FREE DAY](#)

**WE GOT YOU COVERED,
WITH ONE NUMBER & A NEW "HELP ME IMPORT" EMAIL ADDRESS!**
Dial 888 - 262 2520 or email to: US038-helpmeimport@msc.com
For Import Inquiries Only



From: Diamond, Chris <cdiamond@mohawkglobal.com>
Sent: Tuesday, December 15, 2020 11:25 AM
To: Lydia Miner (MSC USA) <lydia.miner@msc.com>
Cc: Gaia Sutti (MSC USA) <gaia.sutti@msc.com>; Victoria Jackson (MSC USA) <victoria.jackson@msc.com>
Subject: RE: NEED 4 ARRIVAL NOTICES!!!

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

I have had my IT department find the 4 emails sent to info@mohawk and send them to me.

What is the fastest way to pay these to get the 4 containers Freight Released?

From: lydia.miner@msc.com <lydia.miner@msc.com>
Sent: Tuesday, December 15, 2020 10:45 AM
To: Diamond, Chris <cdiamond@mohawkglobal.com>
Cc: gaia.sutti@msc.com; victoria.jackson@msc.com
Subject: RE: NEED 4 ARRIVAL NOTICES!!!

EXB 7
PAGE 11 OF 14

Hello Chris,

Yes, we will send them to you.

Should you be receiving all arrival notices then?

We will have to update our internal data base but also, when the booking client places the booking, they should provide the proper email address.

Please follow this link for a [full list of contacts at our offices in the United States](#)

Lydia Miner - Kometz

General Manager

Import Documentation & Customer Service

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

420 Fifth Avenue, New York, NY, 10018 USA

T: +1 212 827 1618 M: +1 347 276 5203 F: +1 212 827 1636 W: www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva

**WE GOT YOU COVERED,
WITH ONE NUMBER & A NEW "HELP ME IMPORT" EMAIL ADDRESS!**
Dial 888-262-2520 or email: US038-helpmeimport@msc.com
For Import Inquiries Only



MYMSC.COM

[DETENTION
DEMURRAGE](#)

[TRACK A
SHIPMENT](#)

[LAST FREE DAY](#)



mscfoundation.org/donate-now



From: Diamond, Chris <cdiamond@mohawkglobal.com>

Sent: Tuesday, December 15, 2020 10:42 AM

To: Lydia Miner (MSC USA) <lydia.miner@msc.com>

Cc: Gaia Sutti (MSC USA) <gaia.sutti@msc.com>; Victoria Jackson (MSC USA) <victoria.jackson@msc.com>

Subject: RE: NEED 4 ARRIVAL NOTICES!!!

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Info@Mohawk is an unmonitored account.

Could you arrange to have them forwarded to me?

From: lydia.miner@msc.com <lydia.miner@msc.com>
Sent: Tuesday, December 15, 2020 10:41 AM
To: Diamond, Chris <cdiamond@mohawkglobal.com>
Cc: gaia.sutti@msc.com; victoria.jackson@msc.com
Subject: RE: NEED 4 ARRIVAL NOTICES!!!

Hello Chris,
 These were all sent to Mohawk twice.
 You can also retrieve arrival notices from mymsc.com.

Arrival Notice Generator Report

B/L Number	Final Destination	A/N Sent	Revised A/N Sent	ETA POD	Customer Email	Notify	Notify MSC Code	Notify Email	Previous To Address
MEDUL2901048	Fall River, MA	11/30/2020 11:21 AM	12/8/2020 10:32 AM	12/11/2020		MOHAWK GLOBAL	USA11623	info@mohawkglobal.com	info@msc.com
MEDUL2901063	Fall River, MA	11/30/2020 11:22 AM	12/8/2020 10:32 AM	12/11/2020		MOHAWK GLOBAL	USA11623	info@mohawkglobal.com	info@mohawkglobal.com
MEDUL2901121	Fall River, MA	11/30/2020 11:22 AM	12/8/2020 10:33 AM	12/11/2020		MOHAWK GLOBAL	USA11623	info@mohawkglobal.com	info@msc.com
MEDUL2919032	Fall River, MA	12/7/2020 10:41 AM	12/11/2020 8:01 AM	12/13/2020		MOHAWK GLOBAL	USA11623	info@mohawkglobal.com	

Please follow this link for a [full list of contacts at our offices in the United States](#)

Lydia Miner - Kometz

General Manager

Import Documentation & Customer Service

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

420 Fifth Avenue, New York, NY, 10018 USA

T: +1 212 827 1618 M: +1 347 276 5203 F: +1 212 827 1636 W: www.msc.com

As agent for MSC Mediterranean Shipping Company S.A., Geneva

EXB 7
PAGE 13 OF 14

**WE GOT YOU COVERED,
WITH ONE NUMBER & A NEW "HELP ME IMPORT" EMAIL ADDRESS!**
Dial 888-262-2520 or email: US038-helpmeimport@msc.com
For Import Inquiries Only



MYMSC.COM

[DETENTION
DEMURRAGE](#)

[TRACK A
SHIPMENT](#)

[LAST FREE DAY](#)



mscfoundation.org/donate-now



From: Diamond, Chris <cdiamond@mohawkglobal.com>

Sent: Tuesday, December 15, 2020 10:34 AM

To: Lydia Miner (MSC USA) <lydia.miner@msc.com>

Cc: Gaia Sutti (MSC USA) <gaia.sutti@msc.com>

Subject: FW: NEED 4 ARRIVAL NOTICES!!!

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Hi Lydia,

Can you help?

I've been asking for Arrival Notices since 12/9 and not a single response yet.

From: Diamond, Chris

Sent: Friday, December 11, 2020 11:04 AM

To: us038-arrival.notices@msc.com; US038-HelpMeImport@msc.com

Cc: 'dorota.mazur@msc.com' <dorota.mazur@msc.com>; Sweeney, Steve <ssweeney@mohawkglobal.com>

Subject: NEED 4 ARRIVAL NOTICES!!!

We have 4 containers arriving this weekend and I have not received Arrival Notices yet.

Per Dorota Mazur @ MSC there are Collect charges due. I've been asking for 2 days for Arrival Notices to be sent. I cannot pay your collect charges if I have no idea how much the charges are.

MEDUL2919032
MEDUL2901121
MEDUL2901048
MEDUL2901063

EXB 7
PAGE 14 OF 14

Thanks,

Chris Diamond

Operations Manager

T (508) 257-1052 | M (617) 820-3785

1165 Washington Street | Hanover, MA | 02339

mohawkglobal.com | OTI No.003952NF

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Sensitivity: Internal



Sensitivity: Internal



Sensitivity: Internal

Sensitivity: Internal

Sensitivity: Internal

Sensitivity: Internal

Sensitivity: Internal

EXB 8
PAGE 1 OF 1



MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
As agent for MSC Mediterranean Shipping Company S.A., Geneva
420 5th Avenue New York, NY 10018
Phone: (212) 764-4800 Fax: (212) 764-6599

Printed: 12/16/2020 - 5:20:44PM

INVOICE

Page 1 of 1

INVOICE Number: NYC2012759959T **Payment Method:** Check **Issuing Office:** CO
Doc Date : 12/16/2020 **Payment Due Date:** 12/16/2020 **Requested By:** Robert Ristau
Bill To: MOHAWK GLOBAL LOGISTICS
1165 WASHINGTON STREET
Hanover, MA 02339

Mail To: MOHAWK GLOBAL LOGISTICS
1165 WASHINGTON STREET
Hanover, MA 02339

Invoice Comments: LFD 12/15 thru 12/23/Laura Cappiello (MSC USA) <laura.cappiello@msc.com>

Charge	Charge Description	Total
DETENTION IMPORT	BL : MEDUL2901048 Contr No: TTNU8065074 Depot : Port Newark Container Terminal	\$1,450.00
DETENTION IMPORT	BL : MEDUL2901063 Contr No: GESU9376550 Depot : Port Newark Container Terminal	\$1,450.00
DETENTION IMPORT	BL : MEDUL2901121 Contr No: CRLU1354247 Depot : Port Newark Container Terminal	\$1,450.00

PAY INVOICE# NYC2012759959T

Total invoiced: \$4,350.00

Pay Invoice Online:
<https://e-pay.mymsc.com/iPayment/>

Invoice Note:

OR

To Pay Invoice by Company Check,
Please make check payable to:
**MSC MEDITERRANEAN SHIPPING
COMPANY (USA) INC. As agent for
MSC Mediterranean Shipping
Company S.A., Geneva**



MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
As agent for MSC Mediterranean Shipping Company S.A., Geneva
420 5th Avenue New York, NY 10018
Phone: (212) 764-4800 Fax: (212) 764-6599

Printed: 12/21/2020 - 11:21:57AM

INVOICE

Page 1 of 1

INVOICE Number:	CHI2012229644T	Payment Method:	Check	Issuing Office:	CO
Doc Date :	12/21/2020	Payment Due Date:	12/21/2020	Requested By:	Thomas Sullivan

Bill To: MOHAWK GLOBAL LOGISTICS
P.O. BOX 3065
Syracuse, NY 13212

Mail To: MOHAWK GLOBAL LOGISTICS
P.O. BOX 3065
Syracuse, NY 13212

Invoice Comments: LFD 12/16 to 12/21 - dorota.mazur@msc.com

Charge	Charge Description	Total
DETENTION IMPORT	BL : MEDUL2919032 Contr No: MEDU9127703 Depot : Port Newark Container Terminal	\$805.00

PAY INVOICE# CHI2012229644T

Total invoiced: \$805.00

Pay Invoice Online:
<https://e-pay.mymsc.com/iPayment/>

Invoice Note:

OR

To Pay Invoice by Company Check,
Please make check payable to:
MSC MEDITERRANEAN SHIPPING
COMPANY (USA) INC. As agent for
MSC Mediterranean Shipping
Company S.A., Geneva



MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.
As agent for MSC Mediterranean Shipping Company S.A., Geneva
420 5th Avenue New York, NY 10018
Phone: (212) 764-4800 Fax: (212) 764-6599

EXB 10
PAGE 1 OF 1
Printed: 12/16/2020 - 9:27:48AM

INVOICE

Page 1 of 1

INVOICE Number: CHI2012228225T Payment Method: Check Issuing Office: CO
Doc Date : 12/16/2020 Payment Due Date: 12/16/2020 Requested By: Robert Ristau

Bill To: MOHAWK GLOBAL LOGISTICS
1165 WASHINGTON STREET
Hanover, MA 02339

Mail To: MOHAWK GLOBAL LOGISTICS
1165 WASHINGTON STREET
Hanover, MA 02339

Invoice Comments: LFD 12/15 thru 12/16

Charge	Charge Description	Total
DETENTION IMPORT	BL : MEDUL2919032 Contr No: MEDU9127703 Depot : Port Newark Container Terminal	\$125.00

Pay Invoice# CHI2012228225T

Total invoiced: \$125.00

Pay Invoice Online:
<https://e-pay.mymsc.com/iPayment/>

Invoice Note:

OR

To Pay Invoice by Company Check,
Please make check payable to:
MSC MEDITERRANEAN SHIPPING
COMPANY (USA) INC. As agent for
MSC Mediterranean Shipping
Company S.A., Geneva

EXP 11
PAGE 1 OF 1



T 800.996.6429 | WWW.MOHAWKGLOBAL.COM

NATIONAL PERMIT 99-00099 | FMC-OTI 003952NF

Remittance Advice - WT121520

Page 1 of 1

THE ACCOUNTS RECEIVABLE MANAGER
MEDITERRANEAN SHIPPING COMPANY
8 ESSEX CENTER DR
PEABODY MA 01960

ACCOUNT	MEDU
DATE	15-Dec-20
TRANSACTION NO.	00117677
PAYMENT REF.	WT121520
BANK CODE	MTMAIN
PAYMENT	USD 468.00

TRANSACTION DETAILS

USD PAYMENT

PAYABLE TRANSACTIONS

INV 15-Dec-20	MEDUL2901048	INV B00113209 - Job B00113209	117.00
INV 15-Dec-20	MEDUL2901063	INV B00114134 - Job B00114134	117.00
INV 15-Dec-20	MEDUL2901121	INV B00113203 - Job B00113203	117.00
INV 15-Dec-20	MEDUL2919032	INV B00114901 - Job B00114901	117.00

MEDITERRANEAN SHIPPING COMPANY 468.00

TOTAL USD 468.00

PLEASE BE ADVISED: THIS REMITTANCE PAYS THE ITEMISED TRANSACTIONS TO THE VALUES NOTED ABOVE

M&T Bank

WT 12 15 20

Payment Detail Report | 100017420 | Mohawk Global Logistics Corp.

Dec 15, 2020 1:41:36 PM

Payment

Payment Type: Wire - Domestic
Status: Released
Entry Method: Created from Template
Template: MSCUS
Value Date: 12/15/2020
Tran Date: 12/15/2020
Credit Amount: 468.00
Debit Amount: 468.00
Exchange Rate: 1
Tnum: 396521
Charges: BEN

Payment ID: 932

Debit Account

Number: 9856533303
Name: MOHAWK GLOBAL LOGISTICS CORP
Type: Checking
Bank: MNTBANK

Originator Information

Name: MOHAWK GLOBAL LOGISTICS CORP
ID: 9856533303
Type: DDA
Country: US

Beneficiary

Name: MEDITERRANEAN SHIPPING CO USA INC
Address 1: 420 FIFTH AVE
Address 2: NEW YORK NY 10018-2702
Country: US
Account: 218811139

Beneficiary Bank

Account Type: Other
Bank Code: 021000021
Bank: JPMorgan Chase Bank, National
Address 1: 242 MAMARONECK AVE
City: MAMARONECK
Country: US

Audit Information

Entered: SHICKEY@MOHAWKGLO 100017420
Approved: SHICKEY@MOHAWKGLO 100017420

Timestamp
Dec 15, 2020 1:39:33 PM
Dec 15, 2020 1:39:36 PM

Settlement Information

Timestamp
Extracted: Dec 15, 2020 1:40:10 PM

 MEDITERRANEAN SHIPPING COMPANY S.A. 12-14, chemin Rieu, 1208 GENEVA, Switzerland Website : www.msc.com		BILL OF LADING No. MEDUL2901121 NON-NEGOTIABLE COPY "Port-to-Port" or "Combined Transport" (see Clause 1)	
SHIPPER: SOCIEDAD EXPORTADORA T&A CORDOVA S.A.C. MZA. V LOTE. 1B INT. 4 Z.I. ZONA INDUSTRIAL II PIURA - PAITA - PAITA - PERU		NO. & SEQUENCE OF ORIGINAL B/L's 0/ZERO	
CONSIGNEE: This B/L is not negotiable unless marked "To Order" or "To Order of..." here. ATLANTIC CAPES FISHERIES INC 140 WALDRON ROAD FALL RIVER, MA 02720 PH: 508-990-9040		NO. OF RIDER PAGES NIL	
NOTIFY PARTIES: (No responsibility shall attach to the Carrier or to his Agent for failure to notify - see Clause 20) MOHAWK GLOBAL 1165 WASHINGTON STREET, HANOVER, MA 02339 MR. CHRIS DIAMOND OPERATIONS MANAGER T (508)257-1052 M (617)820-3785 MOHAWKGLOBAL.COM		CARRIER'S AGENTS ENDORSEMENTS: (Include Agent(s) at POD) FCL/FCL Special contract: R08718090000036 Lloyds/Imo number = 9227314 DESTINATION AGENT ADDRESS: Mediterranean Shipping Company (USA) Inc. 420, 5th Avenue (At 37th Street) - 8th Floor US - 10018-2702 NEW YORK Phone: +1 212 764 4800, Fax: +1 212 764 8592 "The Peruvian local charges "Despacho Documentario", "Despacho de Contenedor", "Gate In/Out" are due and payable at origin by the Merchant in accordance with Carrier's terms and Conditions available at https://www.msc.com/per/contract-of-carriage/msc-peru-terms-conditions SHIPPER DECLARES THAT ANY APPLICABLE WOOD PACKAGING MATERIALS COMPLY WITH ISPM 15 REGULATIONS. FAILURE TO COMPLY WILL RESULT IN CONTAINERS BEING RETURNED TO LOAD PORT OR CARGO DESTROYED - ALL COSTS, FINES, PENALTIES, WILL BE FOR SHIPPERS ACCOUNT.	
VESSEL & VOYAGE NO. (see Clauses 8 & 9) MSC ZLATA R. NQ045R		PORT OF LOADING PAITA, PERU	
BOOKING REF. (or) SHIPPER'S REF. 087LIM392432		PLACE OF RECEIPT: (Combined Transport ONLY - see Clauses 1 & 5.2) XXXXXXXXXXXXXXXXXXXX	
PORT OF DISCHARGE NEW YORK, USA		PLACE OF DELIVERY: (Combined Transport ONLY - see Clauses 1 & 5.2) FALL RIVER, USA	
PARTICULARS FURNISHED BY THE SHIPPER - NOT CHECKED BY CARRIER - CARRIER NOT RESPONSIBLE (see Clause 14)			
Container Numbers, Seal Numbers and Marks	Description of Packages and Goods (Continued on attached Bill of Lading Rider page(s), if applicable)	Gross Cargo Weight	Measurement
CRLU1354247/40'HR TARE: 4600 kg Seal:FX13257942 Seal:009AD016285 TOTAL TARE: 4600.00 kg	1 x 40' CNTR(S) 1201 BOXES 36,030 LBS FROZEN SCALLOPS ROE OFF (ARGOPECTEN PURPURATUS) FREIGHT PREPAID THE REEFER TEMPERATURE TO BE SET AT -20 DEGREES CELSIUS IN ACCORDANCE WITH SHIPPER'S INSTRUCTIONS 1201 BOXES Temp. -20C	18720.000 kg	
TOTALS:		18720.000 kg	
FREIGHT & CHARGES Cargo shall not be delivered unless Freight & Charges are paid (see Clause 16). QUARTELY BUNKER RECOVERY CHARGE - USD 460.00 - PREP CHASSIS USAGE CHARGE - USD 80.00 - COLL SEAFREIGHT - USD 2800.00 - PREP LOW SULPHUR FUEL CONTRIBUTION - USD 100.00 - PREP ONCARRIAGE - USD 1239.00 - PREP ISPS - INTERN. SHIP AND PORT SECURITY CHARGE - USD 15.00 - COLL		RECEIVED by the Carrier in apparent good order and condition (unless otherwise stated herein) the total number or quantity of Containers or other packages or units indicated in the box entitled Carrier's Receipt for carriage subject to all the terms and conditions hereof from the Place of Receipt or Port of Loading to the Port of Discharge or Place of Delivery, whichever is applicable. IN ACCEPTING THIS BILL OF LADING THE MERCHANT EXPRESSLY ACCEPTS AND AGREES TO ALL THE TERMS AND CONDITIONS, WHETHER PRINTED, STAMPED OR OTHERWISE INCORPORATED ON THIS SIDE AND ON THE REVERSE SIDE OF THIS BILL OF LADING AND THE TERMS AND CONDITIONS OF THE CARRIER'S APPLICABLE TARIFF AS IF THEY WERE ALL SIGNED BY THE MERCHANT. If this is a negotiable (To Order / of) Bill of Lading, one original Bill of Lading, duly endorsed must be surrendered by the Merchant to the Carrier (together with outstanding Freight and charges) in exchange for the Goods or a Delivery Order. If this is a non-negotiable (straight) Bill of Lading, the Carrier shall deliver the Goods or issue a Delivery Order (after payment of outstanding Freight and charges) against the surrender of one original Bill of Lading or in accordance with the national law at the Port of Discharge or Place of Delivery whichever is applicable. IN WITNESS WHEREOF the Carrier or their Agent has signed the number of Bills of Lading stated at the top, all of this tenor and date, and wherever one original Bill of Lading has been surrendered all other Bills of Lading shall be void.	
DECLARED VALUE (only applicable if Ad Valorem Charges paid - see Clause 7.3)	CARRIER'S RECEIPT (No. of Cntrs or Pkgs rcvd by Carrier - see Clause 14.1) 1	SIGNED on behalf of the Carrier MSC Mediterranean Shipping Company S.A. MSC LIMA	
PLACE AND DATE OF ISSUE PAITA, 9/11/2020	SHIPPED ON BOARD DATE 9/11/2020		

 MEDITERRANEAN SHIPPING COMPANY S.A. 12-14, chemin Rieu, 1208 GENEVA, Switzerland Website : www.msc.com SCAC Code: MSCU		BILL OF LADING No. MEDUL2919032 NON-NEGOTIABLE COPY "Port-to-Port" or "Combined Transport" (see Clause 1)	
SHIPPER: SOCIEDAD EXPORTADORA T&A CORDOVA S.A.C. MZA. V LOTE. 1B INT. 4 Z.I. ZONA INDUSTRIAL II PIURA - PAITA - PAITA - PERU		CARRIER'S AGENTS ENDORSEMENTS: (Include Agent(s) at POD) FCL/FCL Special contract: R08718090000036 Lloyds/lmo number = 9244881 DESTINATION AGENT ADDRESS: Mediterranean Shipping Company (USA) Inc. 420, 5th Avenue (At 37th Street) - 8th Floor US - 10018-2702 NEW YORK Phone: +1 212 764 4800, Fax: +1 212 764 8592 "The Peruvian local charges "Despacho Documentario", "Despacho de Contenedor", "Gate In/Out" are due and payable at origin by the Merchant in accordance with Carrier's terms and Conditions available at https://www.msc.com/per/contract-of-carriage/msc-peru-terms-conditions "	
CONSIGNEE: This B/L is not negotiable unless marked "To Order" or "To Order of..." here. ATLANTIC CAPES FISHERIES INC 140 WALDRON ROAD FALL RIVER, MA 02720 PH: 508-990-9040			
NOTIFY PARTIES: (No responsibility shall attach to the Carrier or to his Agent for failure to notify - see Clause 20) MOHAWK GLOBAL 1165 WASHINGTON STREET, HANOVER, MA 02339 MR. CHRIS DIAMOND OPERATIONS MANAGER T (508)257-1052 M (617)820-3785 MOHAWKGLOBAL.COM			
VESSEL & VOYAGE NO. (see Clauses 8 & 9) MSC ARUSHI R. NQ047R		PORT OF LOADING PAITA, PERU	PLACE OF RECEIPT: (Combined Transport ONLY - see Clauses 1 & 5.2) XXXXXXXXXXXXXXXXXXXX
BOOKING REF. (or) SHIPPER'S REF. 087LIM394161		PORT OF DISCHARGE NEW YORK, USA	PLACE OF DELIVERY: (Combined Transport ONLY - see Clauses 1 & 5.2) FALL RIVER, USA
PARTICULARS FURNISHED BY THE SHIPPER - NOT CHECKED BY CARRIER - CARRIER NOT RESPONSIBLE (see Clause 14)			
Container Numbers, Seal Numbers and Marks	Description of Packages and Goods (Continued on attached Bill of Lading Rider page(s), if applicable)	Gross Cargo Weight	Measurement
MEDU9127703/40'HR TARE: 4710 kg Seal:FX13261470 Seal:009AD016680 TOTAL TARE: 4710.00 kg	1 x 40' CNTR(S) 1170 BOXES 35,100 LBS FROZEN SCALLOPS ROE OFF (ARGOPECTEN PURPURATUS) "FREIGHT PREPAID" THE REEFER TEMPERATURE TO BE SET AT -20 DEGREES CELSIUS IN ACCORDANCE WITH SHIPPER'S INSTRUCTIONS 1170 BOXES Temp. -20C	18270.000 kg 18270.000 kg	
TOTALS:			
FREIGHT & CHARGES Cargo shall not be delivered unless Freight & Charges are paid (see Clause 16). AS PER AGREEMENT		RECEIVED by the Carrier in apparent good order and condition (unless otherwise stated herein) the total number or quantity of Containers or other packages or units indicated in the box entitled Carrier's Receipt for carriage subject to all the terms and conditions hereof from the Place of Receipt or Port of Loading to the Port of Discharge or Place of Delivery, whichever is applicable. IN ACCEPTING THIS BILL OF LADING THE MERCHANT EXPRESSLY ACCEPTS AND AGREES TO ALL THE TERMS AND CONDITIONS, WHETHER PRINTED, STAMPED OR OTHERWISE INCORPORATED ON THIS SIDE AND ON THE REVERSE SIDE OF THIS BILL OF LADING AND THE TERMS AND CONDITIONS OF THE CARRIER'S APPLICABLE TARIFF AS IF THEY WERE ALL SIGNED BY THE MERCHANT. If this is a negotiable (To Order / of) Bill of Lading, one original Bill of Lading, duly endorsed must be surrendered by the Merchant to the Carrier (together with outstanding Freight and charges) in exchange for the Goods or a Delivery Order. If this is a non-negotiable (straight) Bill of Lading, the Carrier shall deliver the Goods or issue a Delivery Order (after payment of outstanding Freight and charges) against the surrender of one original Bill of Lading or in accordance with the national law at the Port of Discharge or Place of Delivery whichever is applicable. IN WITNESS WHEREOF the Carrier or their Agent has signed the number of Bills of Lading stated at the top, all of this tenor and date, and wherever one original Bill of Lading has been surrendered all other Bills of Lading shall be void.	
DECLARED VALUE (only applicable if Ad Valorem Charges paid - see Clause 7.3)		CARRIER'S RECEIPT (No. of Cntrs or Pkgs rcvd by Carrier - see Clause 14.1) 1	
PLACE AND DATE OF ISSUE PAITA, 23/11/2020		SIGNED on behalf of the Carrier MSC Mediterranean Shipping Company S.A. MSC LIMA	
SHIPPED ON BOARD DATE 23/11/2020			

 MEDITERRANEAN SHIPPING COMPANY S.A. 12-14, chemin Rieu, 1208 GENEVA, Switzerland Website : www.msc.com SCAC Code: MSCU		BILL OF LADING No. MEDUL2901048 NON-NEGOTIABLE COPY "Port-to-Port" or "Combined Transport" (see Clause 1)	
SHIPPER: SOCIEDAD EXPORTADORA T&A CORDOVA S.A.C. MZA. V LOTE. 1B INT. 4 Z.I. ZONA INDUSTRIAL II PIURA - PAITA - PAITA - PERU		CARRIER'S AGENTS ENDORSEMENTS: (Include Agent(s) at POD) FCL/FCL Special contract: R08718090000036 Lloyds/Imo number = 9227314 DESTINATION AGENT ADDRESS: Mediterranean Shipping Company (USA) Inc. 420, 5th Avenue (At 37th Street) - 8th Floor US - 10018-2702 NEW YORK Phone: +1 212 764 4800, Fax: +1 212 764 8592 "The Peruvian local charges "Despacho Documentario", "Despacho de Contenedor", "Gate In/Out" are due and payable at origin by the Merchant in accordance with Carrier's terms and Conditions available at https://www.msc.com/per/contract-of-carriage/msc-peru-terms-conditions " SHIPPER DECLARES THAT ANY APPLICABLE WOOD PACKAGING MATERIALS COMPLY WITH ISPM 15 REGULATIONS. FAILURE TO COMPLY WILL RESULT IN CONTAINERS BEING RETURNED TO LOAD PORT OR CARGO DESTROYED - ALL COSTS, FINES, PENALTIES, WILL BE FOR SHIPPERS ACCOUNT.	
CONSIGNEE: This B/L is not negotiable unless marked "To Order" or "To Order of..." here. ATLANTIC CAPES FISHERIES INC 140 WALDRON ROAD FALL RIVER, MA 02720 PH: 508-990-9040			
NOTIFY PARTIES: (No responsibility shall attach to the Carrier or to his Agent for failure to notify - see Clause 20) MOHAWK GLOBAL 1165 WASHINGTON STREET, HANOVER, MA 02339 MR. CHRIS DIAMOND OPERATIONS MANAGER T (508)257-1052 M (617)820-3785 MOHAWKGLOBAL.COM			
VESSEL & VOYAGE NO. (see Clauses 8 & 9) MSC ZLATA R. NQ045R		PORT OF LOADING PAITA, PERU	
BOOKING REF. (or) SHIPPER'S REF. 087LIM392437		PLACE OF RECEIPT: (Combined Transport ONLY - see Clauses 1 & 5.2) XXXXXXXXXXXXXXXXXXXX	
PORT OF DISCHARGE NEW YORK, USA		PLACE OF DELIVERY: (Combined Transport ONLY - see Clauses 1 & 5.2) FALL RIVER, USA	
PARTICULARS FURNISHED BY THE SHIPPER - NOT CHECKED BY CARRIER - CARRIER NOT RESPONSIBLE (see Clause 14)			
Container Numbers, Seal Numbers and Marks	Description of Packages and Goods (Continued on attached Bill of Lading Rider page(s), if applicable)	Gross Cargo Weight	Measurement
TTNU8065074/40'HR TARE: 4710 kg Seal:FX13256475 Seal:009AD016250 TOTAL TARE: 4710.00 kg	1 x 40' CNTR(S) 1200 BOXES 36,000 LBS FROZEN SCALLOPS ROE OFF (ARGOPECTEN PURPURATUS) FREIGHT PREPAID THE REEFER TEMPERATURE TO BE SET AT -20 DEGREES CELSIUS IN ACCORDANCE WITH SHIPPER'S INSTRUCTIONS 1200 BOXES Temp. -20C	18710.000 kg	
TOTALS:		18710.000 kg	
FREIGHT & CHARGES Cargo shall not be delivered unless Freight & Charges are paid (see Clause 16). QUARTELY BUNKER RECOVERY CHARGE - USD 460.00 - PREP CHASSIS USAGE CHARGE - USD 80.00 - COLL SEAFREIGHT - USD 2800.00 - PREP LOW SULPHUR FUEL CONTRIBUTION - USD 100.00 - PREP ONCARRIAGE - USD 1239.00 - PREP ISPS - INTERN. SHIP AND PORT SECURITY CHARGE - USD 15.00 - COLL		RECEIVED by the Carrier in apparent good order and condition (unless otherwise stated herein) the total number or quantity of Containers or other packages or units indicated in the box entitled Carrier's Receipt for carriage subject to all the terms and conditions hereof from the Place of Receipt or Port of Loading to the Port of Discharge or Place of Delivery, whichever is applicable. IN ACCEPTING THIS BILL OF LADING THE MERCHANT EXPRESSLY ACCEPTS AND AGREES TO ALL THE TERMS AND CONDITIONS, WHETHER PRINTED, STAMPED OR OTHERWISE INCORPORATED ON THIS SIDE AND ON THE REVERSE SIDE OF THIS BILL OF LADING AND THE TERMS AND CONDITIONS OF THE CARRIER'S APPLICABLE TARIFF AS IF THEY WERE ALL SIGNED BY THE MERCHANT. If this is a negotiable (To Order / of) Bill of Lading, one original Bill of Lading, duly endorsed must be surrendered by the Merchant to the Carrier (together with outstanding Freight and charges) in exchange for the Goods or a Delivery Order. If this is a non-negotiable (straight) Bill of Lading, the Carrier shall deliver the Goods or issue a Delivery Order (after payment of outstanding Freight and charges) against the surrender of one original Bill of Lading or in accordance with the national law at the Port of Discharge or Place of Delivery whichever is applicable. IN WITNESS WHEREOF the Carrier or their Agent has signed the number of Bills of Lading stated at the top, all of this tenor and date, and wherever one original Bill of Lading has been surrendered all other Bills of Lading shall be void.	
DECLARED VALUE (only applicable if Ad Valorem Charges paid - see Clause 7.3)	CARRIER'S RECEIPT (No. of Cntrs or Pkgs rcvd by Carrier - see Clause 14.1) 1	SIGNED on behalf of the Carrier MSC Mediterranean Shipping Company S.A. MSC LIMA	
PLACE AND DATE OF ISSUE PAITA, 9/11/2020	SHIPPED ON BOARD DATE 9/11/2020		

ExB 15
PAGE 1 OF 1

See website for large version of the reverse | Ver página Web para términos y condiciones | Смотрите веб-сайт для ознакомления с условиями и положениями | 提单的条款和条件请见网站 | www.msc.com

 MEDITERRANEAN SHIPPING COMPANY S.A. 12-14, chemin Rieu, 1208 GENEVA, Switzerland Website : www.msc.com SCAC Code: MSCU		BILL OF LADING No. MEDUL2901063 NON-NEGOTIABLE COPY "Port-to-Port" or "Combined Transport" (see Clause 1)	
SHIPPER: SOCIEDAD EXPORTADORA T&A CORDOVA S.A.C. MZA. V LOTE. 1B INT. 4 Z.I. ZONA INDUSTRIAL II PIURA - PAITA - PAITA - PERU		CARRIER'S AGENTS ENDORSEMENTS: (Include Agent(s) at POD) FCL/FCL Special contract: R08718090000036 Lloyds/Imo number = 8917778 DESTINATION AGENT ADDRESS: Mediterranean Shipping Company (USA) Inc. 420, 5th Avenue (At 37th Street) - 8th Floor US - 10018-2702 NEW YORK Phone: +1 212 764 4800, Fax: +1 212 764 8592 "The Peruvian local charges "Despacho Documentario", "Despacho de Contenedor", "Gate In/Out" are due and payable at origin by the Merchant in accordance with Carrier's terms and Conditions available at https://www.msc.com/per/contract-of-carriage/msc-peru-terms-conditions "	
CONSIGNEE: This B/L is not negotiable unless marked "To Order" or "To Order of..." here. ATLANTIC CAPES FISHERIES INC 140 WALDRON ROAD FALL RIVER, MA 02720 PH. 508-990-9040			
NOTIFY PARTIES: (No responsibility shall attach to the Carrier or to his Agent for failure to notify - see Clause 20) MOHAWK GLOBAL 1165 WASHINGTON STREET, HANOVER, MA 02339 MR. CHRIS DIAMOND OPERATIONS MANAGER T (508)257-1052 M (617)820-3785 MOHAWKGLOBAL.COM			
VESSEL & VOYAGE NO. (see Clauses 8 & 9) MSC ELOISE XA041A		PORT OF LOADING PAITA, PERU	PLACE OF RECEIPT: (Combined Transport ONLY - see Clauses 1 & 5.2) XXXXXXXXXXXXXXXXXXXX
BOOKING REF. (or) SHIPPER'S REF. 087LIM392439	PORT OF DISCHARGE NEW YORK, USA		PLACE OF DELIVERY: (Combined Transport ONLY - see Clauses 1 & 5.2) FALL RIVER, USA
PARTICULARS FURNISHED BY THE SHIPPER - NOT CHECKED BY CARRIER - CARRIER NOT RESPONSIBLE (see Clause 14)			
Container Numbers, Seal Numbers and Marks	Description of Packages and Goods (Continued on attached Bill of Lading Rider page(s), if applicable)	Gross Cargo Weight	Measurement
GESU9376550/40'HR TARE: 4540 kg Seal:FX13263377 Seal:009AD016632	1 x 40' CNTR(S) 1200 BOXES 36,000 LBS FROZEN SCALLOPS ROE OFF (ARGOPECTEN PURPURATUS) FREIGHT PREPAID "THE REEFER TEMPERATURE TO BE SET AT -20 DEGREES CELSIUS IN ACCORDANCE WITH SHIPPER'S INSTRUCTIONS" 1200 BOXES Temp. -20C	18740.000 kg	
TOTAL TARE: 4540.00 kg		18740.000 kg	
FREIGHT & CHARGES Cargo shall not be delivered unless Freight & Charges are paid (see Clause 16). QUARTELY BUNKER RECOVERY CHARGE - USD 460.00 - PREP CHASSIS USAGE CHARGE - USD 80.00 - COLL SEAFREIGHT - USD 2800.00 - PREP LOW SULPHUR FUEL CONTRIBUTION - USD 100.00 - PREP ONCARRIAGE - USD 1239.00 - PREP SECURITY MANIFEST AMENDMENT FEE - USD 40.00 - PREP ISPS - INTERN. SHIP AND PORT SECURITY CHARGE - USD 15.00 - COLL		RECEIVED by the Carrier in apparent good order and condition (unless otherwise stated herein) the total number or quantity of Containers or other packages or units indicated in the box entitled Carrier's Receipt for carriage subject to all the terms and conditions hereof from the Place of Receipt or Port of Loading to the Port of Discharge or Place of Delivery, whichever is applicable. IN ACCEPTING THIS BILL OF LADING THE MERCHANT EXPRESSLY ACCEPTS AND AGREES TO ALL THE TERMS AND CONDITIONS, WHETHER PRINTED, STAMPED OR OTHERWISE INCORPORATED ON THIS SIDE AND ON THE REVERSE SIDE OF THIS BILL OF LADING AND THE TERMS AND CONDITIONS OF THE CARRIER'S APPLICABLE TARIFF AS IF THEY WERE ALL SIGNED BY THE MERCHANT. If this is a negotiable (To Order / of) Bill of Lading, one original Bill of Lading, duly endorsed must be surrendered by the Merchant to the Carrier (together with outstanding Freight and charges) in exchange for the Goods or a Delivery Order. If this is a non-negotiable (straight) Bill of Lading, the Carrier shall deliver the Goods or issue a Delivery Order (after payment of outstanding Freight and charges) against the surrender of one original Bill of Lading or in accordance with the national law at the Port of Discharge or Place of Delivery whichever is applicable. IN WITNESS WHEREOF the Carrier or their Agent has signed the number of Bills of Lading stated at the top, all of this tenor and date, and wherever one original Bill of Lading has been surrendered all other Bills of Lading shall be void.	
DECLARED VALUE (only applicable if Ad Valorem Charges paid - see Clause 7.3)	CARRIER'S RECEIPT (No. of Cntrs or Pkgs rcvd by Carrier - see Clause 14.1) 1	SIGNED on behalf of the Carrier MSC Mediterranean Shipping Company S.A. MSC LIMA	
PLACE AND DATE OF ISSUE CALLAO, 16/11/2020	SHIPPED ON BOARD DATE 16/11/2020		

Friday, December 18, 2020 01:25 PM

Thank you for authorizing your payment

Here is your tracking ID - **544198**. Please keep this for your reference.

Payment Details

Container #	Tariff Description	Amount
CRLU1354247	Demurrage paid through 12/23/2020	\$3,643.00
	Total:	\$3,643.00

Terminal: Port Newark Container Terminal

Wednesday, December 16, 2020 09:16 AM

Thank you for authorizing your payment

Here is your tracking ID - **542747**. Please keep this for your reference.

Payment Details

Container #	Tariff Description	Amount
CRLU1354247	Demurrage paid through 12/16/2020	\$404.00
	Total:	\$404.00

Terminal: Unknown

EXP 18
PAGE 1 OF 1

Friday, December 18, 2020 01:29 PM

Thank you for authorizing your payment

Here is your tracking ID - **544209**. Please keep this for your reference.

Payment Details

Container #	Tariff Description	Amount
TTNU8065074	Demurrage paid through 12/23/2020	\$3,643.00
	Total:	\$3,643.00

Terminal: Unknown

EXB 19
PAGE 1 OF 1

Wednesday, December 16, 2020 09:27 AM

Thank you for authorizing your payment

Here is your tracking ID - **542753**. Please keep this for your reference.

Payment Details

Container #	Tariff Description	Amount
TTNU8065074	Demurrage paid through 12/16/2020	\$404.00
	Total:	\$404.00

Terminal: Unknown

EXB 20
PAGE 1 OF 1

Friday, December 18, 2020 01:32 PM

Thank you for authorizing your payment

Here is your tracking ID - **544212**. Please keep this for your reference.

Payment Details

Container #	Tariff Description	Amount
GESU9376550	Demurrage paid through 12/23/2020	\$3,643.00
	Total:	\$3,643.00

Wednesday, December 16, 2020 09:29 AM

Thank you for authorizing your payment

Here is your tracking ID - **542755**. Please keep this for your reference.

Payment Details

Container #	Tariff Description	Amount
GESU9376550	Demurrage paid through 12/16/2020	\$404.00
	Total:	\$404.00

EXB 22
PAGE 1 OF 1

MSC Demurrage and Detention charges under Carrier Haulage

MBL Number	Ctr Number	Detention	Invoice Number	LFD	Thru date	Paid To	Amount	Demurrage	Thru Date	Invoice No.	Paid to	Amount
MEDUL2901048	TTNU8065074	Det	NYC2012759959T	15-Dec	23-Dec	MSC	\$1,450	Demurrage	23-Dec	544209	Terminal	\$3,643.00
								Demurrage	16-Dec	542753	Terminal	\$404.00
MEDUL2901063	GESU9376550	Det	NYC2012759959T	15-Dec	23-Dec	MSC	\$1,450	Demurrage	23-Dec	544212	Terminal	\$3,643.00
								Demurrage	16-Dec	542755	Terminal	\$404.00
MEDUL2901121	CRLU1354247	Det	NYC2012759959T	15-Dec	23-Dec	MSC	\$1,450	Demurrage	23-Dec	544198	Terminal	\$3,643.00
								Demurrage	16-Dec	542747	Terminal	\$404.00
MEDUL2919032	MEDU9127703	Det	CHI2012229644T	16-Dec	21-Dec	MSC	\$805	Demurrage	23-Dec	544307	Terminal	\$3,643.00
MEDUL2919032	MEDU9127703	Det	CHI2012228225T	15-Dec	16-Dec	MSC	\$125	Demurrage	16-Dec	542758	Terminal	\$404.00

Detention paid to MSC: \$5,280

Demurrage pad to Terminal: \$16,188.00

Grand Total: \$21,468.00